

PARIKSHA365 — STUDY NOTES

Polity & Constitution — Common Book

SSC, RRB, Banks (GA), State PSC — Indian
Constitution + Governance

SSC

RRB

BANKS

STATE PSC

PSU

v 2026-04

The promise. Read this book end-to-end (with the usual two re-reads + active recall on the embedded prompts) and you will be able to attempt every quiz question in the Pariksha365 pool for this subject with a strong fundamental grasp.

EXAMINER BLUEPRINT — What Gets Tested Most

Polity is a high-yield subject. In SSC CGL, CHSL, and RRB exams, Polity gives you 5–10 questions per paper. In IBPS PO/Clerk and SBI PO papers, Polity is part of General Awareness and appears regularly. In state PSC exams, it can be 25–40 questions. Here is what examiners actually ask, in order of frequency.

⚠ EXAM ALERT

****Top 7 exam hotspots (memorise these first)**** 1. ****Constitutional Articles by number**** — "Which Article deals with X?" questions appear every paper. Art 32, 21, 21A, 19, 14, 17, 32, 226, 352, 356, 360, 368 are the most-asked. 2. ****Constitutional Amendments with years**** — 42nd (1976), 44th (1978), 52nd (1985), 73rd/74th (1992), 86th (2002), 103rd (2019), 106th (2023). Know year + what changed. 3. ****Constitutional vs Statutory vs Executive bodies**** — A guaranteed 1–2 marks in every exam. Election Commission = constitutional; NHRC = statutory; NITI Aayog = executive. 4. ****The 5 Writs**** — Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo Warranto. Know what each means and which courts can issue them. 5. ****12 Schedules**** — What each contains, which Amendment added Schedules 9–12. 6. ****Landmark cases**** — Kesavananda Bharati (1973), Maneka Gandhi (1978), Indra Sawhney (1992), Puttaswamy (2017), Kesavananda (basic structure). Know case + what it decided. 7. ****Current officeholders**** — President, Vice-President, CJI, CAG, CEC, Lokpal Chair. These are asked every session.

✓ KEY FACT

****Study priority order**** — if your exam is 2 weeks away, study in this sequence: 1. Articles (the "which article" question = guaranteed marks) 2. Amendments + years (5 marks minimum every paper) 3. Constitutional vs Statutory bodies table 4. The 5 Writs + which court issues which 5. 12 Schedules + what changed when 6. Emergency provisions — 3 types, 3 Articles (352 / 356 / 360) 7. Landmark cases — 6 most important 8. Parliamentary procedures (Money Bill, Zero Hour, Question Hour) 9. Centre-State relations (7th Schedule + 3 Lists) 10. Current officeholders (check the "What's New" table at top)

What's New This Year (Polity)

Items below **CHANGE** — re-check before any exam if your prep is later than Q3 2026. The rest of this book (Articles, Schedules, Amendments dates, landmark cases, historical PMs/Presidents) is **static and stable** — does not need re-verification.

Item	Current value (verify before your exam)
Chief Justice of India	Surya Kant (53rd CJI, since 24 Nov 2025; term till 9 Feb 2027)
Vice-President	C.P. Radhakrishnan (15th VP, since 12 Sep 2025)
President	Droupadi Murmu (15th President, since 25 Jul 2022; term till 24 Jul 2027)
Prime Minister	Narendra Modi (3rd term, NDA-3.0, since 9 Jun 2024)
Lok Sabha Speaker	Om Birla (17th + 18th LS Speaker)
Lokpal Chairperson	Justice A.M. Khanwilkar (2nd Lokpal Chairperson)
CAG	K. Sanjay Murthy (15th CAG, since 21 Nov 2024; 6-yr term or till age 65)
CEC	Verify with Election Commission website near your exam date
Constitutional Amendments — total	106 (latest = 106th, Women Reservation in LS + State assemblies, 28 Dec 2023)
Acts of Parliament 2024-25	16 Acts in 2024 + 39 Acts in 2025 (Waqf Amendment Act, Jan Vishwas Act, etc.)

How To Use This Book

Polity rewards students who understand the logic of the Constitution, not just its numbers. This book is written for first-time readers and experienced aspirants alike. Here is how to get the most from it.

Read actively, not passively. When you encounter an Article number, say it aloud. When you read a landmark case, try to recall what it changed. When you hit an "Exam hooks" section, test yourself before reading the answers. Passive reading feels productive but scores zero marks.

Story first, facts second. Every chapter opens with the context — why this Article was written, what crisis triggered it, which debate shaped it. Once you understand the *why*, the facts stick on their own. Constitutions are not written in vacuum; they are written by frightened, brilliant, exhausted people under extraordinary pressure. This book tries to show you those people.

Use the memory aids. The mnemonics, the house-walk palaces, the "FEAR-CC" acronyms — these look silly on paper and work beautifully in the exam hall. Use them.

The "Quick-recall" sections at the end of each chapter are the most important pages. After reading a chapter, close the book and try to answer those points cold. If you can't, re-read just the section you struggled with. One pass through the material is reading; your exam performance depends on what you can *recall under pressure*.

How long this takes: A focused aspirant covering this book end-to-end takes about 15–18 hours. Three quick revision sweeps (one per week in the weeks before the exam) take another 6 hours. That is 24 hours total for a subject that can deliver 25–40 marks in any PSC exam or 5–10 marks in SSC/Banking exams. The return on investment is exceptional.

The one rule of this book: if you are reading a page and thinking "I'll come back to memorise this later" — stop. Come back to it now. There is no later in exam prep. Do it once, do it right.

Part A — The Foundation

The first four chapters give you the **mental map of the Constitution**. Once this map is in your head, every later chapter lands in a pre-allocated slot. Without it, you're memorising the street names of a city whose layout you've never seen.

Chapter 1 — The Story of How India Got Its Constitution

1.1 The hook — why we even needed one

*Imagine you're 32 years old in 1946. Your country has been promised independence. Two weeks earlier, the Muslim League's **Direct Action Day** (16 August 1946) turned Kolkata into 5 days of communal slaughter. The British are drafting an exit plan. You are one of **389** people (later 299) chosen to write the rule book that **1.4 billion** people 77 years later will still be arguing over. What do you do?*

That is the problem the Constituent Assembly walked in with. Understand the scale of that problem and the Constitution's length, complexity + compromises stop looking strange.

1.2 The pre-story — constitutional milestones before 1946

A quick highlight-reel. Each of these is a PYQ on its own, so memorise the one-liner. Many are covered again in Chapter 3 + 13.

Year	Act / Event	One-line importance
1773	Regulating Act	First British law governing India. Created the office of Governor-General of Bengal (Warren Hastings was the first).
1784	Pitt's India Act	Board of Control + Court of Directors — dual govt.
1813	Charter Act	Ended East India Company's trade monopoly (except tea + China).
1833	Charter Act	Lord William Bentinck becomes the first Governor-General of India (not just Bengal).
1853	Charter Act	Open ICS competitive exam.
1858	Government of India Act	Company rule ends; Crown takes over. Queen's Proclamation.
1861	Indian Councils Act	Portfolio system + Indians in legislatures (nominated).
1892	Indian Councils Act	Cautious expansion of council membership.

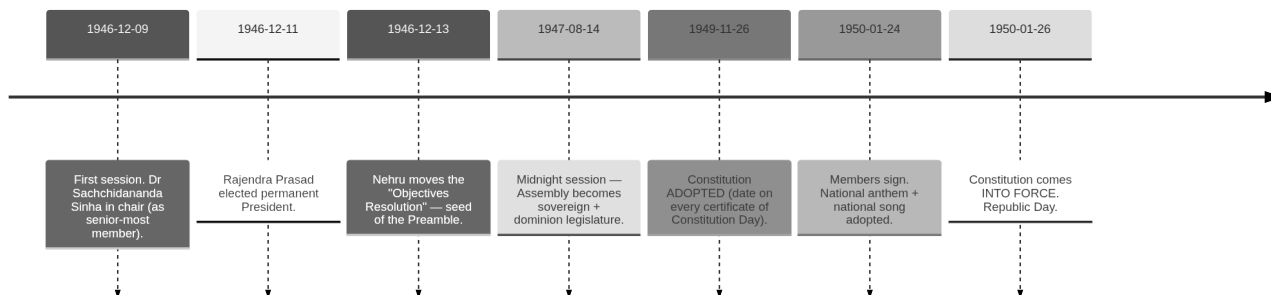
Year	Act / Event	One-line importance
1909	Morley–Minto Reforms	Introduced separate electorates for Muslims — sowed the seed of Partition.
1919	Montagu–Chelmsford (GoI Act 1919)	Introduced diarchy in provinces.
1935	Government of India Act 1935	Longest British statute on India; provincial autonomy; Federal Court; ~2/3 of our Constitution's structural ideas borrowed from here.
1940	August Offer	British concede an Indian-drafted Constitution in principle.
1942	Cripps Mission	Dominion status post-war — rejected.
1946	Cabinet Mission Plan	Proposed three-tier federation + a Constituent Assembly; partition avoided by a hair but rejected by League eventually.

⚠ EXAM ALERT

****Quick test:**** Before reading further, try to name three pre-1946 Acts that shaped the 1950 Constitution and one thing each gave us. If you cannot name even two, go back and re-read the table above.

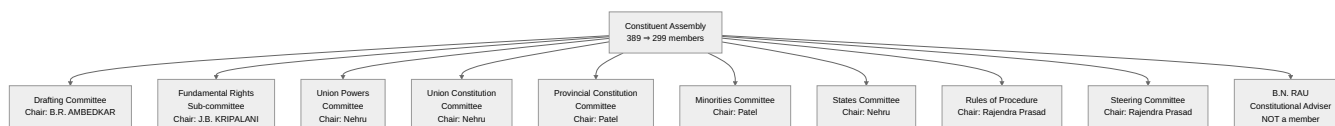
1.3 The Constituent Assembly — the 4 key dates

Constituent Assembly — the chronology



Memorise 26 NOV 1949 + 26 JAN 1950 as the two dates. **Why the 2-month gap?** Because the Assembly wanted the "commencement" to fall on the **same date** Congress had declared Purna Swaraj in 1930 — 26 January — which gave the date emotional weight + made the Republic feel born of the freedom struggle, not gifted by Britain.

1.4 Who drafted what — the key committees



Memory peg — "PRANA DB" for the pillars of the process: **P**resident Rajendra Prasad (chair of CA + Rules + Steering), **R**au, B.N. — adviser who produced the first draft, **A**mbedkar — chair of Drafting Committee, **N**ehru — chaired Union-side committees, **A**ll-committees-Patel for Minorities + Provinces, **D**rafting committee had **7 members**, **B. N. Rau's** draft → Ambedkar polished → the Constitution we have.

The 7 Drafting Committee members (the one list you *must* know by heart):

1. **Dr. B.R. Ambedkar** (Chair)
2. **N. Gopalaswami Ayyangar**
3. **Alladi Krishnaswamy Ayyar**
4. **Dr. K.M. Munshi**
5. **Syed Mohammad Saadullah**
6. **N. Madhava Rao** (replaced B.L. Mitter who resigned on health)
7. **T.T. Krishnamachari** (replaced D.P. Khaitan, who died 1948)

Mnemonic — "A-A-A-M-S-M-K" or say it as a rhythm: *"Ambedkar, Ayyangar, Ayyar, Munshi, Saadullah, Madhava Rao, Krishnamachari."*

⚠ EXAM ALERT

****Memorise these Constituent Assembly facts cold**** — they appear in almost every exam -
First session: ****9 December 1946**** | Constitution adopted: ****26 November 1949**** | Into force: ****26 January 1950**** - Temporary chair of CA: ****Dr. Sachchidananda Sinha**** | Permanent President: ****Dr. Rajendra Prasad**** - Objectives Resolution moved by: ****Jawaharlal Nehru**** on ****13 December 1946**** - Constitutional Adviser (not a member): ****B.N. Rau**** - Drafting Committee chair: ****Dr. B.R. Ambedkar**** | 7 members total - Calligrapher of the Constitution: ****Prem Behari Narain Raizada**** | Illustrator: ****Nandalal Bose****

1.5 How long did it take?

2 years, 11 months, 18 days. Eleven sessions. **165 days of actual sitting.** **141 days** just on debating + voting. Consumed paper: **64 lakh rupees** at the cost of the time. Handwritten by **Prem Behari Narain Raizada** (calligrapher, Delhi). Illustrated + illuminated by **Nandalal Bose + his team** of Shantiniketan artists. The original hand-written volumes are preserved in **helium-filled cases** in the Parliament Library.

1.6 Sources of the Constitution — the "borrowed" critique

Critics (KT Shah, HV Kamath) called the Constitution a "borrowed bag". Our response: it's a *cosmopolitan* Constitution that synthesised the best of several systems and adapted them. What comes from where:

Borrowed from	What we took
UK	Parliamentary system, cabinet system, rule of law, single citizenship, writs.
USA	Written Constitution, Preamble, Fundamental Rights, judicial review, impeachment of President + SC judges, VP.
Ireland	Directive Principles, nomination to RS, method of Presidential election.
Canada	Quasi-federal structure (strong centre), residuary powers with centre, appointment of state Governors, SC advisory jurisdiction.
Australia	Concurrent List, freedom of trade + commerce + intercourse (Art 301), joint sitting of Parliament.
Germany (Weimar)	Emergency Provisions + suspension of FRs during Emergency.
Soviet Union (USSR)	Fundamental Duties, ideals of justice in the Preamble (social, economic, political).
France	Republic, ideals of liberty + equality + fraternity.
South Africa	Procedure for amending the Constitution, election of RS members.
Japan	"Procedure established by law" (Art 21).
Government of India Act 1935	Around 2/3 of the Constitution's structural clauses — Federal scheme, public service commissions, Emergency provisions, administrative details, role of Governors.

✓ KEY FACT

****Quick-recall: Sources of the Constitution**** UK gave the how-government-runs (parliamentary system, cabinet, writs, single citizenship). USA gave the citizen's shield (FRs, judicial review, written Constitution). Ireland gave the promises (DPSPs, RS nomination, Presidential election). Canada gave the glue to the centre (quasi-federal, residuary powers with Centre). Germany gave the emergency brakes (suspension of FRs during Emergency). USSR gave duties and ideals (FDs, social/economic/political justice in Preamble). The 1935 Government of India Act gave the machinery — nearly two-thirds of the entire constitutional structure.

1.7 How the Objectives Resolution became the Preamble

On **13 December 1946**, Nehru moved the **Objectives Resolution**. It declared India a "sovereign democratic republic" committed to "justice, social, economic + political; equality of status, of opportunity, + before the law; freedom of thought, expression, belief, faith, worship, vocation, association + action." The Resolution was **adopted 22 January 1947**. In slightly polished form, it became the **Preamble**. Recognise these phrases — they are on every page of the Constitution's spirit, and they are on every answer sheet in mains.

1.8 Exam hooks for Chapter 1

- Dates to memorise **verbatim**: 9 Dec 1946, 11 Dec 1946, 13 Dec 1946, 26 Nov 1949, 24 Jan 1950, 26 Jan 1950.
- Name Chairs of the major committees (see the tree above).
- Name all 7 Drafting Committee members.
- Which **one** country gave us which **one** feature — matching Qs are common (see Sources table).
- How long did it take to frame (2y 11m 18d) + how much did it cost (₹64 L).
- Who signed first? Rajendra Prasad. Who gave the first copy? The calligrapher Prem Behari Narain Raizada; illustrations by Nandalal Bose.

⚠ EXAM ALERT

****Quick test:**** Close the book and name: (a) the chair of the Drafting Committee, (b) the Constitutional Adviser, (c) the first chair of the Constituent Assembly, (d) the date the Constitution was adopted, (e) the date it came into force. Write the answers, then check. If you missed any, re-read §1.3 above.

Chapter 2 — The Preamble

2.1 Why spend a chapter on 85 words?

Because **every** word is freighted, every word has been judicially analysed, and almost every clause has been amended at least once. The Preamble:

1. Declares the **source of authority** — "We, the People of India".
2. Declares the **type of state** — "Sovereign Socialist Secular Democratic Republic".
3. Declares the **goals** — Justice, Liberty, Equality, Fraternity.
4. Declares the **date** — "adopted, enacted, and given to ourselves this 26th day of November, 1949".

2.2 The text (memorise it)

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:

JUSTICE, social, economic and political; **LIBERTY** of thought, expression, belief, faith and worship; **EQUALITY** of status and of opportunity; and to promote among them all **FRATERNITY** assuring the dignity of the individual and the unity and integrity of the Nation;

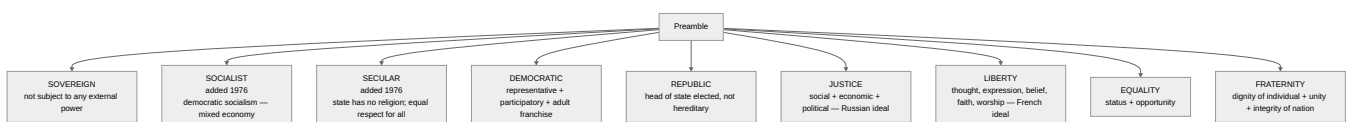
IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do hereby adopt, enact and give to ourselves this Constitution.

Three words to flag: **SOCIALIST, SECULAR, INTEGRITY**. None of these were in the original 1950 text. All three were **added by the 42nd Amendment, 1976** during the Emergency. Mnemonic: "*Indira inserted SSI*" (Socialist, Secular, Integrity). We return to this in Chapter 28.

× COMMON TRAP

****Common trap — three words NOT in the original Preamble:**** SOCIALIST, SECULAR, INTEGRITY. All three were added by the ****42nd Amendment, 1976**** under Indira Gandhi's Emergency government. Examiners regularly ask which words were added and when. Mnemonic: **"Indira inserted SSI."**

2.3 Keywords — nested meanings



2.4 Is the Preamble part of the Constitution?

This is a **favourite PYQ**.

- *Berubari Union (1960)* — SC held the Preamble is a key to the mind of the framers but **NOT part of the Constitution**.
- *Kesavananda Bharati (1973)* — 13-judge bench overruled Berubari on this point. Preamble **IS part of the Constitution** and can be amended, but the amendment cannot destroy the **basic features** reflected in the Preamble.
- *LIC of India v. Consumer Education and Research Centre (1995)* — again confirmed Preamble as part of the Constitution.

So today: **Yes, part. Yes, amendable. No, cannot destroy basic structure.**

2.5 Justice — Liberty — Equality — Fraternity, in that order



Why this order? Dr Ambedkar, in his famous closing speech (25 Nov 1949):

"The principles of liberty, equality and fraternity are not to be treated as separate items in a trinity. They form a union of trinity in the sense that to divorce one from the other is to defeat the very purpose of democracy."

You'll see this quote quoted back at you in mains essays; it's that useful.

2.6 Exam hooks

- Three words inserted by the **42nd Amendment (1976)**: Socialist, Secular, Integrity.
- *Kesavananda (1973)* — Preamble is part of the Constitution.
- *Berubari (1960)* — earlier, said it was NOT part. (Don't mix these two.)
- French Revolution gave us Liberty, Equality, Fraternity.
- USSR gave us "Justice — social, economic, political."
- The Preamble was moved as the Objectives Resolution on **13 Dec 1946** by **Nehru**; adopted **22 Jan 1947**.

✓ KEY FACT

****Quick-recall: The Preamble**** We the people of a sovereign, socialist, secular, democratic republic promise ourselves justice (from USSR ideals), liberty (French), equality (French), and fraternity (French). Adopted 26 Nov 1949. Part of the Constitution after *Kesavananda 1973* — amendable, but never in ways that destroy its basic spirit. Three words added by 42nd Amendment 1976: ****Socialist, Secular, Integrity.**** Two cases on whether the Preamble is part of the Constitution: **Berubari (1960)** said No; **Kesavananda (1973)** said Yes.

Chapter 3 — Salient Features of the Indian Constitution

A catalogue of the **defining characteristics**. Memorise them as a mental list — examiners love a straight 5-or-6 point "Describe salient features" question.

3.1 The thirteen salient features

1. **Longest written constitution in the world.** Original 1950 text had **395 Articles in 22 Parts + 8 Schedules**. Today (with amendments and re-numberings): **~448 Articles across 25 Parts +**

12 Schedules. Why so long? Three reasons: (a) one Constitution for 28 states + 8 UTs of widely varying sizes, (b) the Government of India Act 1935 was itself gigantic and we absorbed its machinery, (c) detailed safeguards for minorities, SCs, STs + tribal areas.

2. **Drawn from various sources** (Chapter 1 §1.6 — don't repeat the list here).
3. **Blend of rigidity + flexibility.** Some provisions amendable by simple majority (e.g., creating a new state, Part I), some by special majority (most of Part III + IV), some by special majority **plus** ratification by at least half the states (federal matters — Chapter 28).
4. **Federal structure with unitary bias.** Federation in form — strong unitary features (single constitution, single citizenship, flexible boundaries, emergency provisions). Granville Austin: "*cooperative federalism*". K.C. Wheare: "*quasi-federal*".
5. **Parliamentary form of government** (UK model — Westminster system). Not Presidential (US). Real power in the Prime Minister; nominal in President. See Chapter 12.
6. **Integrated + independent judiciary.** One Supreme Court at the top, one structure of High Courts and subordinate courts below — no separate state supreme courts (unlike USA). Independence via Art 50, tenure, salaries charged on Consolidated Fund, removal only by impeachment.
7. **Fundamental Rights** — Chapter 6.
8. **Directive Principles of State Policy** — Chapter 7.
9. **Fundamental Duties** — Chapter 8 (added by 42nd Amendment).
10. **Indian Secularism** — positive, not wall-of-separation. State treats all religions equally (sarva dharma sama bhava) + can intervene for reform (abolishing untouchability, banning triple talaq).
11. **Universal adult franchise** — every citizen ≥ 18 years votes. Voting age lowered from 21 to 18 by the **61st Amendment, 1988** (Rajiv Gandhi).
12. **Single citizenship.** Unlike USA (federal + state) or Switzerland, India has **one** citizenship — Indian. Regardless of your state, your rights are the same.
13. **Emergency provisions** (Arts 352 / 356 / 360 — Chapter 27).

Mnemonic — "LOUD FRIENDS-PIES": Lengthy, Origin-mixed, Unique blend of rigidity + flexibility, Dual federal/unitary, Fundamental rights + duties, Rule of law, Independent judiciary, Emergency, Nominal head, Directive principles, Secular, Parliamentary, Independent election commission, Enfranchisement universal, Single citizenship.

✓ KEY FACT

****Quick-recall: Indian Constitution in 90 seconds**** The lengthiest written constitution in the world. One country across 28 states with one citizenship. A strong centre that can still be federal. A Westminster prime-minister-led parliament with a nominal president. Six enforceable rights and eleven non-enforceable but binding duties, plus a long list of guiding promises called the DPSPs. Independent judiciary, independent election commission, universal adult franchise, declared secular and socialist since 1976, and three emergency brakes if the state comes apart (Art 352, 356, 360).

3.2 Exam hooks

- Original vs today counts: Articles 395 → ~448; Schedules 8 → 12.
- **61st Amendment** lowered voting age to 18.
- Federal vs unitary — Granville Austin called it **cooperative federalism**; K.C. Wheare called it **quasi-federal**.
- Parliamentary system borrowed from **UK**; single citizenship also UK.

⚠ EXAM ALERT

****Quick test:**** List any seven salient features from memory. Then try them in reverse order — this is harder and forces deeper recall. If you get fewer than five, re-read §3.1.

Chapter 4 — The Schedules + the Parts (the map of the Constitution)

Think of the Constitution as a **big house**. Parts are the rooms. Schedules are the **cupboards in those rooms** where details live.

4.1 The 12 Schedules — the one cheat-sheet

#	Schedule	Contents + what to remember
1	First	List of States + UTs + their territories. Changes with every reorganisation (J&K, Telangana, etc.).
2	Second	Salaries + emoluments of the President, Vice-President, Governors, SC + HC judges, CAG, Speaker, etc. Charged on the Consolidated Fund.
3	Third	Forms of oaths + affirmations — for the President, Ministers, MPs, MLAs, SC/HC judges, CAG.
4	Fourth	Allocation of RS seats to states and UTs.
5	Fifth	Administration + control of Scheduled Areas + Scheduled Tribes (except in 6th Schedule states). 10 states — PESA, 1996 extends Panchayati Raj here.
6	Sixth	Administration of Tribal Areas in Assam, Meghalaya, Tripura + Mizoram — Autonomous District Councils.
7	Seventh	Union List (97 → 100+), State List (66 → 61), Concurrent List (47 → 52) . Division of subjects between Centre + States.
8	Eighth	Languages — originally 14, now 22 .
9	Ninth	Added by 1st Amendment, 1951 — a protective list of land-reform laws + agrarian reform laws that could not be challenged in court for violating FRs. <i>I.R. Coelho v. State of TN (2007)</i> — post-24 April 1973 additions ARE open to judicial review if they violate basic structure.

#	Schedule	Contents + what to remember
10	Tenth	Added by 52nd Amendment, 1985 — Anti-Defection Law . Modified by 91st (2003).
11	Eleventh	Added by 73rd Amendment, 1992 — 29 subjects for Panchayats (agriculture, land reforms, minor irrigation, etc.).
12	Twelfth	Added by 74th Amendment, 1992 — 18 subjects for Municipalities (urban planning, fire services, slum improvement, etc.).

MEMORY PALACE — PUTTING SCHEDULES IN A HOUSE

Walk through **your home** and place one Schedule per room:

1. **Gate** → Schedule 1 (States + UTs — the *boundaries* of the nation, like a gate).
2. **ATM near gate** → Schedule 2 (Salaries).
3. **Temple in courtyard** → Schedule 3 (Oaths — you *swear* before God).
4. **Living-room sofa** → Schedule 4 (RS seat allocation — a *seated* council).
5. **Study room** → Schedule 5 (Scheduled Areas + STs).
6. **Backyard tree** → Schedule 6 (Tribal Areas of NE — trees = forests).
7. **Kitchen** → Schedule 7 (three Lists — Union, State, Concurrent — the three *burners*).
8. **Library shelf** → Schedule 8 (Languages).
9. **Locked cupboard** → Schedule 9 (protected laws — locked away from courts).
10. **TV remote** → Schedule 10 (Anti-defection — remote-controls MP behaviour).
11. **Balcony (village view)** → Schedule 11 (Panchayats — village powers).
12. **Rooftop (city view)** → Schedule 12 (Municipalities — urban powers).

Walk through this palace **three times** (morning, noon, night) for 3 days and the 12 Schedules + their dates + their additions become permanent.

4.2 The 25 Parts — the building's skeleton



Not every Part gets its own chapter; some (VII, X, XIII, XV, XVI, XIX) are minor or repealed. The Parts you will actually meet in this book are those on the tree above.

4.3 Exam hooks

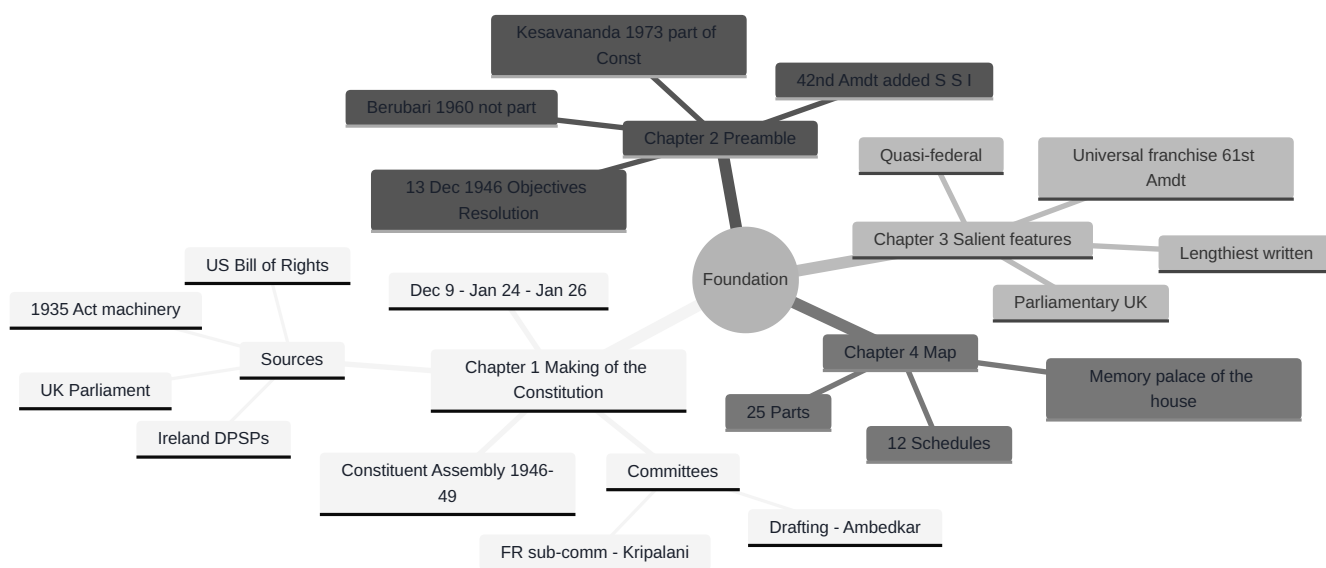
- Schedule 1 = States + UTs (changes often).
- Schedule 6 = **NE tribal areas** (Assam, Meghalaya, Tripura, Mizoram — memorise the 4).
- Schedule 7 = three Lists. **Union 100, State 61, Concurrent 52** (updated counts).
- Schedule 8 = **22 languages**. Added by: Sindhi (1967, 21st Amdt); Konkani, Manipuri, Nepali (1992, 71st); Bodo, Dogri, Maithili, Santhali (2003, 92nd).
- Schedule 9 = 1st Amendment 1951; judicial-review-proof only till 24-Apr-1973 (I.R. Coelho, 2007).

- Schedule 10 = 52nd Amendment 1985 (Rajiv Gandhi); tightened 91st Amdt 2003.
- Schedules 11 + 12 = 73rd + 74th Amendments, 1992.

⚠ EXAM ALERT

****Quick test:**** Name all 12 Schedules using the house-walk mnemonic. If you miss one, repeat from the gate — do not cheat by looking back. Three clean runs through the palace and these 12 entries are yours permanently.

Part A — Mind map (one-page revision)



Mark this page. Before every revision session, read this map for 90 seconds — it gives you the complete Part A structure at a glance.

Part B — The Citizen-State Compact

You now know how the Constitution was written + how it's laid out. Part B is about the **deal** between citizen and state: who counts as Indian, what they can demand from the state, and what the state asks back.

Chapter 5 — Citizenship (Part II, Articles 5–11)

5.1 Hook — the Partition problem

On 15 August 1947, **15 million people were on the wrong side of a new line**. Hindus + Sikhs fleeing East to West; Muslims fleeing West to East. The Constituent Assembly had to answer one question fast: *"Who, among all these people and their descendants, is an Indian citizen?"*

The answer lived in Articles 5 to 11 — deliberately short. Parliament was instructed to fill in details by statute. It did so through the **Citizenship Act, 1955**, which we'll unpack.

5.2 Articles 5 – 11 — a one-line gist of each

Article	What it does
5	Citizens at the commencement (26 Jan 1950) — domicile-based rule.
6	Citizenship of persons who migrated from Pakistan to India .
7	Citizenship of persons who migrated from India to Pakistan then returned.
8	Citizenship of Persons of Indian Origin residing abroad.
9	Voluntarily acquiring citizenship of a foreign state = loss of Indian citizenship.
10	Every citizen continues as such subject to Parliament's laws.
11	Parliament's power to regulate citizenship by law. (Basis of the 1955 Act.)

5.3 The Citizenship Act, 1955 — five gateways in + three exits

Five ways to BECOME a citizen:

1. **By birth** (Sec 3). - Born in India on or after 26 Jan 1950 and before 1 July 1987 — automatically citizen. - Born 1 July 1987 – 2 Dec 2004 — citizen if at least one parent was citizen at the time of birth. - Born on or after 3 Dec 2004 — citizen **only if BOTH parents are citizens**, or one is citizen + the other is not an illegal migrant.
2. **By descent** (Sec 4) — born outside India after 26 Jan 1950 to parents (earlier father only) who are Indian citizens; registration at Indian consulate within prescribed time.

3. **By registration** (Sec 5) — persons of Indian origin, spouses of citizens, minor children of citizens, OCIs of 5 years' registration, etc.
4. **By naturalisation** (Sec 6) — foreigner of full age + 12 years' residence (lowered to 6 years under the CAA 2019 for specific groups) + good character + adequate knowledge of a scheduled language + willingness to renounce previous citizenship + take the oath.
5. **By incorporation of territory** (Sec 7) — when new territory joins India (e.g., Sikkim, Pondicherry after their mergers).

Three ways to LOSE citizenship (Sec 8–10):

1. **Renunciation** — voluntary declaration.
2. **Termination** — auto, if you acquire another country's citizenship.
3. **Deprivation** — by government, on grounds of fraud, disloyalty, trading with enemy, sentence of ≥ 2 years within 5 years of naturalisation, etc.

5.4 CAA 2019 — what actually changed

The **Citizenship Amendment Act, 2019** (effective when Rules were notified, 11 March 2024) gave a **fast-track path to citizenship by naturalisation** (from 12 → **6 years** residence) for **non-Muslim migrants** from **3 countries** (Pakistan, Afghanistan, Bangladesh) belonging to **6 religions** (Hindu, Sikh, Buddhist, Jain, Parsi, Christian), who entered India **on or before 31 December 2014** fleeing religious persecution.

Key fact: CAA does **not** take any Indian citizen's rights away. It only *adds* a path. Its political controversy is about the **exclusion of Muslims** from the eligible religions. Court challenges are pending in the SC.

Pair the CAA with two other acronyms that come up together: - **NRC (National Register of Citizens)** — currently only for Assam; created under the 1955 Act; Assam NRC's final list was published Aug 2019 and excluded 19 lakh persons; contested. - **NPR (National Population Register)** — a register of **usual residents**, not citizens — maintained under the Citizenship Rules 2003.

5.5 OCI + PIO — the twin cards

- **PIO (Person of Indian Origin) card** — launched 1999 for diaspora. **Merged into OCI in 2015** (no fresh PIO cards issued).
- **OCI (Overseas Citizen of India)** — introduced by the **Citizenship (Amendment) Act, 2003**. NOT a dual citizenship. OCIs don't get: voting right, Indian passport, govt jobs, agricultural land, election to Parliament/Assemblies, appointment to constitutional offices. But they get: lifelong visa-free travel, parity with NRIs on economic, financial + educational matters.

✓ KEY FACT

****Quick-recall: Citizenship**** Indian citizenship is single and regulated by Parliament under Article 11. Five ways in — birth, descent, registration, naturalisation, incorporation of territory — all in the Citizenship Act 1955. Three ways out — renunciation, termination, deprivation. Overseas Indians can be OCIs but never dual citizens. The CAA 2019 shortens the naturalisation clock from 12 to 6 years for persecuted non-Muslim migrants from Pakistan, Afghanistan, and Bangladesh who entered India before 31 December 2014.

5.6 Exam hooks

- Parts covered: Part II, Arts 5–11.
- **Article 11** = Parliament's power over citizenship.
- **Citizenship Act, 1955** = the actual statute.
- CAA 2019 + Rules 2024 — 3 countries + 6 religions + cut-off 31 Dec 2014.
- OCI is **not** dual citizenship.
- Born 3 Dec 2004 onward → both parents test.

⚠ EXAM ALERT

****Quick test:**** Name the 5 ways to acquire Indian citizenship and the 3 ways to lose it. Then answer: is an OCI a dual citizen? (No. OCI gives visa-free travel and NRI parity, but not voting rights, passport, or constitutional offices.)

Chapter 6 — Fundamental Rights (Articles 12–35)

Where the citizen puts on armour against the state.

6.1 The deal, in one sentence

The Constituent Assembly had a choice. The United Kingdom gave citizens no written list of rights — they trusted Parliament + the common law. The United States wrote 10 of them into the Bill of Rights. India, coming out of colonial abuse + caste discrimination + communal partition, chose the American path — with extra teeth + extra restrictions.

Exam weight — roughly 1 in every 4 Polity questions across SSC / RRB / PO / Banking / State-PSC references either the Articles, the landmark cases, or post-independence amendments on FRs. UPSC GS-2 essays are frequently built around FRs + DPSP harmonisation. **Get this chapter to 100%.**

6.2 Origin + philosophy

- Drew largely from the **US Bill of Rights (1791)** — written, justiciable, binding on the state. Indian framers went further:
- Indian FRs are **not absolute** — packaged with **reasonable restrictions** (Arts 19(2)–(6)), so Parliament can limit rights for public order, morality, sovereignty, etc.
- Explicit written rights because (a) partition-era communal violence demanded clear minority protection, (b) caste society needed enforceable equality, (c) colonial state trampled liberties without remedy.
- **Objectives Resolution (13 Dec 1946)** → flowed into Part III.

Drafting committee chairs that shaped FRs:

- **Advisory Committee on FRs + Minorities + Tribal Areas** — chaired by **Sardar Patel**.
- **Sub-committee on FRs** — chaired by **J.B. Kripalani** (most of the wording).
- **Drafting Committee** — chaired by **Dr. B.R. Ambedkar**.
- **Sapru Committee (1945)** had earlier recommended justiciable FRs.

6.3 Originally 7 → now 6

At adoption (26 Jan 1950), Part III guaranteed **7 FRs**:

1. Right to Equality
2. Right to Freedom
3. Right against Exploitation
4. Right to Freedom of Religion
5. Cultural + Educational Rights
6. **Right to Property** ← removed
7. Right to Constitutional Remedies

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****FEAR-CC**** = the 6 Fundamental Rights: ****F**reedom** (Arts 19–22) · ****E**quality** (14–18) · ****A**gainst exploitation** (23–24) · ****R**eligion freedom** (25–28) · ****C**ultural/Educational** (29–30) · ****C**onstitutional Remedies** (32) Originally 7 FRs. Right to Property (FR #6) was removed by the ****44th Amendment, 1978**** under Morarji Desai's government and moved to Art 300A as a legal right.

44th Amendment (1978), Morarji Desai's Janata govt, **deleted Right to Property** (from Arts 19(1)(f) + 31). Today property is a **legal** right, Art 300A. Why: Indira-era land-reform laws kept being struck down on "right to property" grounds; moving it out unblocked redistribution.

Mnemonic — "FEAR-CC" for the 6 FRs: **F**reedom (Arts 19–22), **E**quality (14–18), **A**gainst exploitation (23–24), **R**eligion freedom (25–28), **C**ultural/educational (29–30), **C**onstitutional remedies (32).

6.4 Article 12 — "The State"

FRs bind the **State**, so we need a precise definition. Art 12:

"The State" includes — (a) Government + Parliament of India; (b) Government + Legislature of each State; (c) all local or other authorities within the territory of India; (d) under the control of the Government of India.

"Other authorities" — the litigated phrase. Expanded progressively by SC:

- *Rajasthan Electricity Board (1967)* — statutory bodies count.
- *Sukhdev Singh v. Bhagatram (1975)* — ONGC, LIC, IFCI = "State".
- *R.D. Shetty v. IAAI (1979)* — 6-point test by Bhagwati J.
- *Ajay Hasia v. Khalid Mujib (1981)* — RECs (societies under Societies Act) = "State".
- *Pradeep Kumar Biswas v. IICB (2002)*, 7-judge bench — **consolidated test**: entity is "State" if **"financially, functionally and administratively dominated by or under the control of the Government"**.
- *Zee Telefilms v. Uoi (2005)* — held BCCI is **not** "State" (controversial).

Judiciary as "State"? SC in *Naresh Shridhar Mirajkar (1967)* held **judicial functions** are *not* "State" under Art 12 — but administrative functions (staff recruitment, infrastructure) are. Can't get a writ to quash a judgment on FR grounds — appeal instead.

ARTICLE 13 — THE ENFORCEMENT LEVER

- **Art 13(1)**: pre-Constitution laws inconsistent with FRs are **void**.
- **Art 13(2)**: post-Constitution laws inconsistent with FRs are **void**.
- **Art 13(3)(a)**: "Law" includes ordinances, orders, bye-laws, rules, regulations, notifications, customs or usages having force of law.
- **Art 13(4)**: **Constitutional amendments** are **NOT** law under Art 13 — inserted by **24th Amendment (1971)** in reaction to *Golaknath (1967)*. *Kesavananda (1973)* added the basic-structure limit.

Three doctrines to memorise: - **Severability** — only offending part of a law struck down; rest survives. *A.K. Gopalan v. Madras (1950)*. - **Eclipse** — pre-1950 laws inconsistent with FRs go into eclipse (unenforceable against citizens, enforceable against non-citizens). Revive if FR later amended. *Bhikaji Narain Dhakras (1955)*. - **Waiver** — a citizen **cannot waive** a FR. *Basheshar Nath v. CIT (1959)*.

6.5 Right to Equality (Articles 14–18)

The single golden thread: the first cluster of Part III dismantles the pre-1950 structures of **colonial privilege + caste hierarchy + gender discrimination**.

ART 14 — EQUALITY BEFORE LAW + EQUAL PROTECTION OF LAWS

Two phrases, two origins: - **Equality before the law** — English common law (Dicey) — negative; no one above the law. - **Equal protection of laws** — US 14th Amendment — positive; like treatment in like circumstances; state *must* classify people for welfare purposes.

Reasonable classification test — *State of W.B. v. Anwar Ali Sarkar (1952)*: 1. Classification must be founded on an **intelligible differentia**. 2. That differentia must have a **rational nexus** with the object of the law.

Doctrine of Arbitrariness — *E.P. Royappa v. TN (1974)* (Bhagwati J.): "*Equality and arbitrariness are sworn enemies.*" Expanded Art 14 from classification to reasonableness everywhere.

Applied in: *Maneka Gandhi (1978)* — Art 21 widened; *Ajay Hasia (1981)*; *Shayara Bano (2017)* — instant triple talaq struck.

Exceptions under Art 361: President + Governors immune from criminal proceedings during term; MPs + MLAs immune for anything said/voted in House (Arts 105 + 194); foreign diplomats (Vienna Convention + Diplomatic Relations Act 1972); UN + agencies.

ART 15 — PROHIBITION OF DISCRIMINATION

- 15(1) — state shall not discriminate on **5 grounds: religion, race, caste, sex, place of birth**.
- 15(2) — access to public places (shops, hotels, tanks, restaurants, wells).
- 15(3) — special provisions for **women + children** (gender-positive).
- 15(4) — special provisions for **SEBCs + SCs + STs** — inserted by **1st Amendment (1951)** after *Champakam Dorairajan (1951)*.
- 15(5) — reservation in **private unaided educational institutions** except minority ones — inserted by **93rd Amendment (2005)**.
- 15(6) — **10% EWS reservation** — inserted by **103rd Amendment (2019)**. Upheld in *Janhit Abhiyan v. UoI (2022)* 3-2.

Case anchors: - *Champakam Dorairajan (1951)* → triggered 1st Amendment. - *Balaji v. State of Mysore (1963)* → **50% ceiling on reservation** first laid down. - *Indra Sawhney (Mandal) (1992)* → 9-judge bench. 27% OBC upheld; 50% ceiling reaffirmed; **creamy layer** concept introduced. - *M. Nagaraj (2006)* → SC/ST promotion reservation requires State to prove backwardness + inadequate representation + no compromise to administrative efficiency. - *Janhit Abhiyan (2022)* → EWS upheld; broke the 50% ceiling for economic reservations.

ART 16 — EQUALITY OF OPPORTUNITY IN PUBLIC EMPLOYMENT

- 16(1) + 16(2) — no discrimination on the 5 grounds of Art 15 + also **descent + residence**.
- 16(3) — Parliament can prescribe **residence** as a qualification for some state jobs.
- 16(4) — reservation for "any backward class" not adequately represented.
- 16(4A) — reservation **in promotion** with **consequential seniority** for SC/ST — **77th (1995) + 85th (2001)** Amendments.
- 16(4B) — carry-forward of unfilled reserved vacancies — **81st Amendment (2000)**.

- 16(5) — religious positions may be restricted to persons of that religion.
- 16(6) — **EWS 10% in jobs** — 103rd Amdt 2019.

ART 17 — ABOLITION OF UNTOUCHABILITY

Short + absolute. **"Untouchability" is abolished and its practice in any form is forbidden.** Enforced by **Protection of Civil Rights Act 1955** + SC/ST (Prevention of Atrocities) Act 1989. **Binds private persons too** — a rare horizontal FR.

Sabarimala (2018) — 5-judge majority held barring women 10–50 from Ayyappa temple violated Art 17 (Chandrachud J.'s broad reading) + Arts 14, 15, 25. Review pending in 9-judge bench.

ART 18 — ABOLITION OF TITLES

- State cannot confer titles (other than military or academic).
- Citizens cannot accept titles from foreign states.
- **Padma awards + Bharat Ratna** are NOT titles (*Balaji Raghavan v. Uol, 1996*) — can't be prefixed/suffixed to your name.

6.6 Right to Freedom (Articles 19–22)

ART 19 — SIX FREEDOMS

Mnemonic — "SAM-FROP" for the 6 freedoms: *Speech + expression (19(1)(a)), Assembly peacefully without arms (b), Movement (d), Form associations/unions (c), Reside + settle (e), Occupation/trade/business (g). Earlier (f) Property — removed by 44th Amdt.*

Each freedom has matched **reasonable restrictions**:

Freedom	Restriction grounds (Art)
Speech + expression 19(1)(a)	sovereignty + integrity, security of State, friendly foreign relations, public order, decency + morality, contempt of court, defamation, incitement to offence — 19(2).
Assembly 19(1)(b)	sovereignty + integrity, public order — 19(3).
Association 19(1)(c)	sovereignty + integrity, public order, morality — 19(4).
Movement 19(1)(d)	general public + protection of ST — 19(5).
Residence 19(1)(e)	same as above — 19(5).
Profession 19(1)(g)	professional qualifications, State monopoly, public interest — 19(6).

Grounds added by amendment: - "Public order" + "friendly relations with foreign states" → **1st Amendment (1951)**. - "Sovereignty + integrity of India" + "incitement to an offence" → **16th Amendment (1963)**.

Big 19(1)(a) cases: - *Romesh Thappar (1950)* → struck down Madras ban on Cross Roads. - *Indian Express v. UoI (1985)* → newspaper import duty. - *Shreya Singhal (2015)* → **Sec 66A IT Act struck down** (vague + chilling). - *Navtej Johar (2018)* → read down Sec 377. - *Anuradha Bhasin (2020)* → J&K internet shutdowns under proportionality. - *Kaushal Kishor (2023)* — 5-judge bench: Art 19(2) grounds are **exhaustive**.

Restriction test: *K.A. Abbas v. UoI (1971)* + *Chintamanrao (1951)* — proportionate, not arbitrary, related to a listed ground.

ART 20 — PROTECTION FOR CONVICTION OF OFFENCES

Three guarantees: 1. **No ex post facto law** — only for criminal laws. 2. **No double jeopardy** — narrower than US; only judicial prosecution + punishment stage. 3. **No self-incrimination** — includes oral testimony + document production; narcoanalysis/polygraph/brain-mapping without consent violates it (*Selvi v. Karnataka, 2010*). Fingerprints + DNA + medical exam = NOT testimonial, so allowed.

Art 20 is **non-suspendable** even during Emergency (Art 359, 44th Amdt).

ART 21 — PROTECTION OF LIFE + PERSONAL LIBERTY

"No person shall be deprived of his life or personal liberty except according to procedure established by law."

The single most consequential sentence in the Constitution.

✓ KEY FACT

****Article 21 — the most expansive FR in the Constitution**** Courts have read the following rights into Art 21 over the decades: right to privacy (*Puttaswamy 2017*), right to livelihood (*Olga Tellis 1985*), right to a clean environment (*M.C. Mehta 1987*), right to speedy trial, right to free legal aid, right to shelter, right to sleep, right against handcuffing and solitary confinement, right to die with dignity (*Common Cause 2018*). The golden triangle = Arts ****14 + 19 + 21**** — all three must be satisfied together for any law that restricts liberty to be valid (*Maneka Gandhi 1978*).

- *A.K. Gopalan (1950)* → literal reading. "Procedure established by law" = any law passed.
- *Maneka Gandhi (1978)*, 7-judge bench → transformed Art 21. Procedure must be **fair, just, and reasonable**. Linked Arts 14, 19, 21 as a *golden triangle*.
- *Francis Coralie Mullin (1981)* → dignity.
- *Olga Tellis (1985)* → livelihood (pavement dwellers).
- *M.C. Mehta (1987)* → environment.
- *Vishaka (1997)* → workplace sexual harassment → POSH Act 2013.
- *Puttaswamy (2017)*, 9-judge bench unanimous → **Privacy = FR**. Overruled *MP Sharma (1954)* + *Kharak Singh (1962)*.

- *Common Cause (2018)* → passive euthanasia + living wills OK.
- *Navtej Johar (2018)*, *Joseph Shine (2018)* — personal-law restrictions struck down using Arts 21 + 14.

Judicially read-in rights under Art 21 (non-exhaustive): dignity, livelihood, privacy, clean environment, speedy trial, free legal aid, shelter, education (now Art 21A after 86th Amdt 2002), health, sleep, against solitary confinement + handcuffing + torture, travel abroad, against bonded labour, die with dignity.

ART 21A — RIGHT TO EDUCATION

Inserted by **86th Amendment, 2002**. Free + compulsory education ages **6–14**. Operationalised by the **RTE Act 2009** (effective 1 Apr 2010). Pre-school (3–6) remains under Art 45 (DPSP, also amended by 86th).

RTE pillars: 25% quota for weaker sections in private unaided schools (*Society for Unaided Private Schools v. UoI, 2012* — upheld except for minority unaided schools); no detention till Class 8 (relaxed 2019); teacher- pupil ratio + infrastructure norms; no screening, capitation, expulsion.

ART 22 — PROTECTION AGAINST ARREST + DETENTION

A. Ordinary arrest (clauses 1+2): - Right to be **informed** of grounds of arrest. - Right to **consult a legal practitioner** of choice. - **Produced before nearest Magistrate within 24 hrs** (excluding journey). - No detention beyond 24 hrs without magisterial authority.

B. Preventive detention (clauses 3–7): - Those rights do NOT apply. - Detention up to **3 months** without Advisory Board approval; beyond 3 months only on Advisory Board (HC judges or equivalent) recommendation. - Grounds communicated "as soon as may be" (with public-interest exceptions). - 44th Amendment tried to reduce 3 → 2 months; never brought into force.

Preventive detention laws: NSA (1980), PSA (J&K 1978), COFEPOSA (1974), PITNDPS (1988), UAPA (1967; amended 2019), PMLA — recurring current affairs + editorial fodder.

6.7 Right against Exploitation (Articles 23–24)

ART 23 — HUMAN TRAFFICKING + FORCED LABOUR PROHIBITED

- Traffic in human beings (includes slavery, devadasi, prostitution).
- **Begar** (forced unpaid labour) abolished.
- Compulsory service for **public purpose** (military conscription, civic duties) allowed — state cannot discriminate on religion etc.

PUDR v. UoI (1982) — non-payment of minimum wage = **forced labour** under Art 23.

Laws: Immoral Traffic (Prevention) Act 1956, Bonded Labour System (Abolition) Act 1976, POCSO 2012.

ART 24 — CHILD LABOUR BELOW 14 IN FACTORIES OR HAZARDOUS EMPLOYMENT

- No child below 14 in any factory, mine, or hazardous employment.
- Child Labour Amendment 2016 prohibits under-14s from all employment (except non-hazardous family enterprise); 14–18s barred from hazardous work.

M.C. Mehta v. TN (1996) — Sivakasi match factories; SC directed compensation + rehabilitation of child workers.

6.8 Right to Freedom of Religion (Articles 25–28)

ART 25 — INDIVIDUAL FREEDOM OF CONSCIENCE + PROFESSION, PRACTICE, PROPAGATION

Subject to public order, morality, health. State can regulate "secular activities associated with religious practice" + open Hindu religious institutions to all Hindus (Explanation II — applies to Sikhs, Jains, Buddhists too).

Essential Religious Practices (ERP) doctrine — *Shirur Mutt (1954)*. Courts decide what is essential vs not. Used in Ananda Margi tandava, Sabarimala, hijab cases.

ART 26 — COLLECTIVE RIGHT OF RELIGIOUS DENOMINATIONS

Can establish + maintain institutions for religious + charitable purposes; manage own affairs in religion; own + acquire property; administer property in accordance with law.

ART 27 — NO TAX FOR SPECIFIC RELIGIOUS PROMOTION

Can't compel tax whose proceeds specifically fund one religion. General taxes or fees — fine even if incidental religious benefit.

ART 28 — RELIGIOUS INSTRUCTION IN EDUCATIONAL INSTITUTIONS

- **Wholly state-funded** — no religious instruction.
- **State-aided** — religious instruction allowed, no compulsion.
- **Endowment-run-by-state** — religious instruction allowed.
- **Fully private** — any religious instruction.

6.9 Cultural + Educational Rights (Articles 29–30)

ART 29 — INTERESTS OF MINORITIES

- Any section with distinct language, script, or culture can **conserve** it.
- No citizen denied admission to state or state-aided institutions on religion, race, caste, language. SC read 29(2) as applicable to **any** citizen in *St. Stephen's v. DU (1992)*.

ART 30 — MINORITIES' RIGHT TO ESTABLISH + ADMINISTER EDUCATIONAL INSTITUTIONS

- "*All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.*"
- State aid cannot discriminate against minority institutions.

- Right is of the **community**, not individuals.

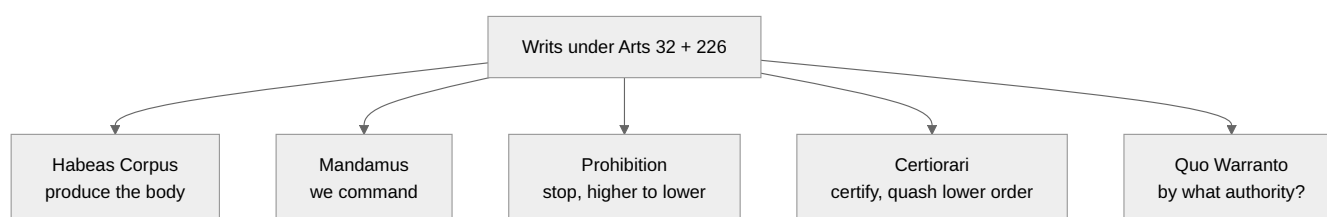
Landmarks: *T.M.A. Pai Foundation (2002)* 11-judge bench; *P.A. Inamdar (2005)*. **Minority status** decided at **state** level, not national (*T.M.A. Pai*). **AMU** status restored by **November 2024 7-judge bench** (overruled *Azeez Basha 1967*; factual determination remitted).

6.10 Right to Constitutional Remedies (Article 32)

Dr. Ambedkar: "If I was asked to name any particular article in this Constitution as the most important — an article without which this Constitution would be a nullity — I could not refer to any other article except this one. It is the very soul of the Constitution and the very heart of it."

Art 32 itself is a **FR**. Any FR violation → citizen can directly approach the **SC** (bypassing HCs if they wish). SC **must** entertain the petition (*Romesh Thappar, 1950*) — can't refuse on alternate-remedy grounds.

THE FIVE WRITS



Writ	Against	Effect
Habeas corpus	Public authority or private person	Produce unlawfully detained person in court
Mandamus	Public authority (not President, not Governor for personal acts)	Perform a statutory duty
Prohibition	Lower courts + tribunals	Stop a pending proceeding exceeding jurisdiction
Certiorari	Lower courts + tribunals + admin authorities (after <i>A.K. Kraipak</i>)	Quash an already-passed order
Quo warranto	Public-office holder	Test legal authority to hold the post

ART 32 VS ART 226

Feature	Art 32 (SC)	Art 226 (HC)
FR itself?	Yes	No (constitutional but not FR)

Feature	Art 32 (SC)	Art 226 (HC)
Scope	Only FR enforcement	FR + "any other purpose" — broader
Territorial jurisdiction	Pan-India	State + cause-of-action areas
Suspendable?	Only by Presidential order in Emergency (post-44th, NOT for Arts 20 + 21)	Same
Alternate-remedy refusal	Narrow	HC can refuse

PIL evolved from Art 32 — SC relaxed *locus standi*. *S.P. Gupta (1981)*, *Hussainara Khatoon (1979)*, *Bandhua Mukti Morcha (1984)*. Today a major accountability tool — with occasional "publicity interest litigation" caution.

6.11 Enabling powers — Articles 33, 34, 35

- **Art 33** — Parliament may modify FRs for **armed forces + police + intel agencies** (basis of Army Act, etc. curtailing rights like unions).
- **Art 34** — restrictions while **martial law** is in force. (Never formally used in India post-independence.)
- **Art 35** — only Parliament, not states, can make laws giving effect to certain FRs (e.g., 16(3), 32(3), Arts 33, 34).

6.12 The FRs non-citizens get too

Mostly citizens-only FRs: 15, 16, 19, 29, 30.

Everyone (including non-citizens) gets: Arts **14, 20, 21, 21A, 22, 23, 24, 25, 26, 27, 28**.

During Emergency: - Art 19 auto-suspended only for war/external aggression (not armed rebellion, post-44th Amdt). - Under Art 359 Presidential Order: any FR can be suspended **except Arts 20 + 21**.

6.13 Landmark FR cases — quick-recall sheet

Year	Case	One-line significance
1950	A.K. Gopalan	Literal Art 21.
1951	Champakam Dorairajan	Struck caste-based education reservation → 1st Amdt.
1952	Anwar Ali Sarkar	Reasonable classification test (Art 14).
1967	Golaknath	Parliament CANNOT amend FRs → reversed by 24th Amdt + <i>Kesavananda</i> .
1970	R.C. Cooper	Joint review of Arts 14, 19, 21.

Year	Case	One-line significance
1973	Kesavananda Bharati	Basic Structure.
1975	Indira Gandhi v. Raj Narain	Free + fair elections = basic structure.
1976	ADM Jabalpur	Art 21 could be suspended (overruled + disowned; reversed by 44th Amdt).
1978	Maneka Gandhi	Art 21 procedure must be fair, just + reasonable.
1980	Minerva Mills	Judicial review = basic structure.
1985	Olga Tellis	Livelihood under Art 21.
1992	Indra Sawhney	Mandal; 27% OBC; 50% cap; creamy layer.
1993	Unnikrishnan	Education under Art 21 (pre-86th Amdt).
1997	Vishaka	Workplace sexual harassment → POSH 2013.
2014	NALSA	Transgender = third gender; Arts 14, 19, 21.
2017	Puttaswamy	Privacy = FR.
2017	Shayara Bano	Instant triple talaq struck.
2018	Navtej Johar	Read down Sec 377.
2018	Joseph Shine	Struck Sec 497 IPC (adultery).
2018	Sabarimala	Women 10–50 entry permitted (under review).
2022	Janhit Abhiyan	EWS upheld.

6.14 Major amendments to FRs

Amendment	Year	Effect on FRs
1st	1951	Art 15(4); 9th Schedule; public order + friendly relations to 19(2).
7th	1956	Minor FR text tweaks.
16th	1963	Sovereignty + integrity to 19(2).
24th	1971	Art 13(4) + 368 — Parliament can amend FRs.
25th	1971	Art 31C — 39(b) + 39(c) priority over FRs.
42nd	1976	DPSP primacy extended; FDs added; struck down part in <i>Minerva Mills</i> .
44th	1978	Property dropped from FRs ; Arts 20 + 21 non-suspendable.
77th, 81st, 85th	1995–2001	Reservation in promotion restored.

Amendment	Year	Effect on FRs
86th	2002	Art 21A — RTE.
93rd	2005	Art 15(5).
97th	2011	Right to cooperatives (Art 19(1)(c) + Part IX-B).
102nd	2018	NCBC — Art 338B.
103rd	2019	EWS 10% reservation — Arts 15(6) + 16(6).

6.15 Mnemonics + one-line recaps

🧠 **Mnemonic** — "**Every Fast Runner Can Currently Cross**" → **E**quality (14–18), **F**reedom (19–22), **R**ight against exploitation (23–24), **C**ulture of religion (25–28), **C**ultural + educational (29–30), **C**onstitutional remedies (32).

🧠 **The 6 freedoms** — **SAM-FROP**: **S**peech, **A**ssembly, **M**ovement, **F**orm associations, **R**eside, **O**ccupation / **P**rofession.

🧠 **Article chain** — 12 State → 13 Judicial review → 14 Equality before law → 15 Non-discrimination → 16 Job equality → 17 Untouchability → 18 Titles abolished → 19 Six freedoms → 20 Ex post facto + double jeopardy + self-incrimination → 21 Life + liberty → 21A Education → 22 Arrest → 23 Trafficking + forced labour → 24 Child labour → 25–28 Religion cluster → 29–30 Minority cluster → 32 Heart & soul.

🧠 **FRs for non-citizens too**: 14, 20, 21, 21A, 22, 23, 24, 25, 26, 27, 28.

🧠 **"STATE" under Art 12** — **GL-OC**: **G**ovt + Parliament, **L**egislature + Govt of States, **O**ther authorities, **C**ontrolled-by-Govt. Pradeep Biswas (2002) = definitive test.

6.16 Exam hooks

- Right to Property removed by 44th Amdt (1978).
- Art 32 = "heart and soul".
- J.B. Kripalani chaired the FR sub-committee.
- Doctrine of Eclipse — *Bhikaji Narain Dhakras (1955)*.
- Promotion-reservation with seniority — 77th + 85th Amdts.
- 50% ceiling first — *M.R. Balaji (1963)*.
- EWS upheld — *Janhit Abhiyan (2022)*.
- 86th Amdt → Art 21A.
- ERP doctrine — *Shirur Mutt (1954)*.

✓ KEY FACT

****Quick-recall: Fundamental Rights**** Six shields: equality (14–18), freedom (19–22), against exploitation (23–24), religious freedom (25–28), minority culture (29–30), and the writ-powered remedy at 32. Property got downgraded to a legal right in 1978 (44th Amendment). Article 21 has grown into a mini-constitution on its own — privacy, livelihood, environment, dignity, education, speedy trial, free legal aid, all read in by the Supreme Court. No one, not even Parliament, can amend the Constitution in a way that destroys these rights' basic structure — that is the Kesavananda doctrine (1973).

⚠ EXAM ALERT

****Quick test:**** Name the 6 FRs with their Article ranges and one landmark case for each. Do this in your head in under 3 minutes. If you cannot recall a case, write "?" next to that FR and revise that section.

Chapter 7 — Directive Principles of State Policy (Articles 36–51)

7.1 Hook — the promises the courts can't enforce

If FRs are the **shields** the citizen raises against the state, DPSPs are the **promises** the state makes to itself about the kind of society it intends to build. They are in Part IV, Articles 36–51. Borrowed from the **Irish Constitution (1937)**, which in turn drew from Spain.

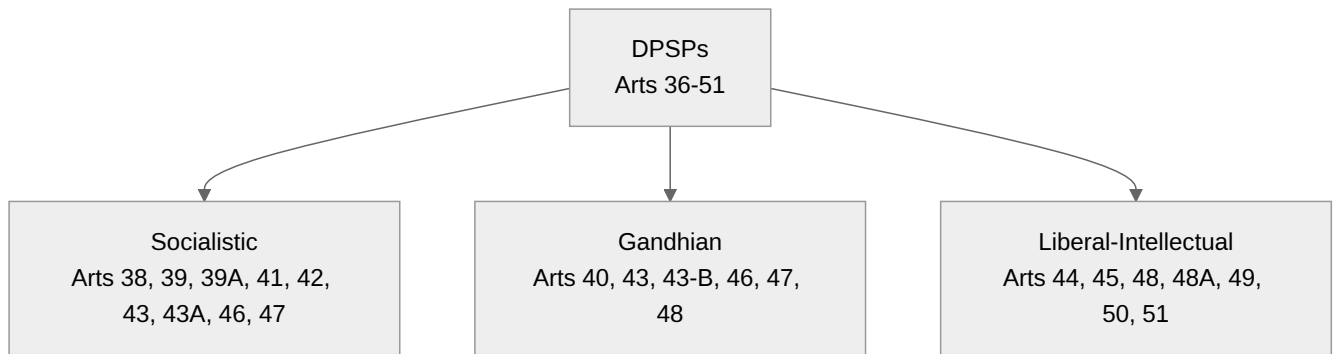
× COMMON TRAP

****FR vs DPSP — the most common trap question**** | Feature | Fundamental Rights | Directive Principles | |---|---|---| | Part | III (Arts 12–35) | IV (Arts 36–51) | | Justiciable? | YES — enforceable in courts | NO — not enforceable in courts | | Source | US Bill of Rights | Irish Constitution (1937) | | Nature | Negative (state must NOT do X) | Positive (state SHOULD do Y) | | Suspended during Emergency? | Some can be | Cannot be suspended | After *Minerva Mills* 1980: both FRs and DPSPs are part of the basic structure. Parliament cannot prioritise one absolutely over the other.

They are **not justiciable**. You cannot go to court to enforce a DPSP. But:

- The state is expected to apply these principles when making laws — **Art 37**.
- In the balance between FRs + DPSPs, the SC has evolved the "**harmonious construction**" doctrine (*Minerva Mills*, 1980): Constitution rests on the bedrock of both, and the two must be read together, not as rivals.

7.2 Classification of DPSPs — three clean buckets



Socialistic (equality of opportunity + welfare state): - Art 38 — promote welfare; minimise inequality. - Art 39 — adequate means of livelihood, equal pay for equal work, workers' health, childhood protection, distribution of material resources for common good. - Art 39A — equal justice + **free legal aid**. - Art 41 — right to work, education, public assistance. - Art 42 — just + humane work conditions + maternity relief. - Art 43 — living wage + decent standard of life. - Art 43A — workers' participation in management. - Art 46 — educational + economic interests of SC/ST/weaker sections. - Art 47 — nutrition + public health; prohibit intoxicants.

Gandhian: - Art 40 — **village panchayats** (realised by 73rd Amdt). - Art 43 — cottage industries in rural areas. - Art 43B — promotion of **cooperatives** (added by 97th Amdt 2011). - Art 46 — SC/ST/weaker-section welfare. - Art 47 — prohibition of alcohol + harmful drugs. - Art 48 — modern agriculture + animal husbandry; cattle protection.

Liberal-Intellectual: - Art 44 — **Uniform Civil Code** (UCC). - Art 45 — early childhood care + education (modified by 86th Amdt). - Art 48 — scientific farming. - Art 48A — protect + improve **environment + forests + wildlife** (added by 42nd Amdt 1976). - Art 49 — protect national monuments + places of artistic importance. - Art 50 — separation of judiciary from executive. - Art 51 — promote **international peace + security**; honour international law; peaceful settlement of disputes; respect for UN.

7.3 DPSPs newly added by amendments

Know these by heart:

Amdt	Year	DPSP added / modified
42nd	1976	Art 39A (legal aid), Art 43A (workers' participation), Art 48A (environment).
44th	1978	Art 38(2) — reduce inequalities in income + facilities.
86th	2002	Art 45 changed to early childhood (0–6); Art 21A made separate FR.
97th	2011	Art 43B — cooperatives.

7.4 FR vs DPSP — the contrast table (very high-yield)

Feature	Fundamental Rights (Part III)	Directive Principles (Part IV)
Nature	Justiciable (Art 32)	Non-justiciable (Art 37)
Borrowed from	USA	Ireland
Goal	Political democracy (individual rights)	Social + economic democracy
Negative / positive	Negative (what state can't do)	Positive (what state should do)
Bind	State	State
Sanction	Courts	Political / electoral
Individual / collective	Individual	Collective welfare
In conflict	Generally FR prevails; but Art 31C carves out DPSP primacy in Arts 39(b) + (c)	

The 3 clash-and-harmonise cases: - *State of Madras v. Champakam Dorairajan* (1951) → FR wins over DPSP. Triggered **1st Amendment**. - *Golaknath* (1967) → Parliament cannot amend FRs even to implement DPSPs → reversed. - *Kesavananda* (1973) → basic structure doctrine; tried to balance. - *Minerva Mills* (1980) → 42nd Amdt's attempt to place all DPSPs above all FRs struck down. **"FRs + DPSPs together constitute the conscience of the Constitution."**

7.5 Examples of DPSP → law implementation (memorise 5)

DPSP	Law(s) implementing it
Art 40 (village panchayats)	73rd Amdt, 1992; Panchayati Raj Acts.
Art 41 (right to work)	MGNREGA, 2005.
Art 42 (maternity relief)	Maternity Benefit Act 1961 (amended 2017).
Art 43A (workers' participation)	Industrial Disputes Act 1947; Companies Act 2013 (workers' committees).
Art 45 → Art 21A (RTE)	RTE Act 2009.
Art 47 (prohibition)	Bihar + Gujarat prohibition laws.
Art 48 (cattle protection)	State cow - slaughter laws.
Art 48A (environment)	Environment Protection Act 1986.
Art 50 (judicial separation)	CrPC Sec 54 (separation of judicial + executive magistrates, phased in).

7.6 Exam hooks

- **Part IV**, Arts 36–51.
- Borrowed from **Ireland** (via Spain).
- **Non-justiciable** (Art 37); but binding in law-making.
- 3 buckets — Socialistic, Gandhian, Liberal-Intellectual.
- Art 44 = UCC (Goa has UCC; Uttarakhand passed UCC, 2024, operational Jan 2025).
- Art 48A added by 42nd Amdt — environment.
- Art 39A = free legal aid → NALSA 1987.
- Art 43B = cooperatives (97th Amdt 2011).

✓ KEY FACT

****Quick-recall: DPSPs**** Sixteen articles in Part IV (Arts 36–51) that tell the state to build a just, caring, and peaceful India. They cannot be enforced in court but they guide every law. When the court has to harmonise them with FRs, it treats both as equally basic — *Minerva Mills* 1980. Socialist articles on welfare, Gandhian articles on village life and prohibition, Liberal articles on UCC, separation of powers, and the environment. Key Article numbers: village panchayats = ****Art 40****, UCC = ****Art 44****, environment + forests = ****Art 48A****, legal aid = ****Art 39A****, judiciary's separation from executive = ****Art 50****.

Chapter 8 — Fundamental Duties (Article 51-A, Part IV-A)

8.1 Hook — where FRs face the mirror

FRs + DPSPs were in the 1950 Constitution. **Fundamental Duties were not**. They were added much later — during the **Emergency**. The Indira Gandhi government set up the **Swaran Singh Committee (1976)** which recommended adding duties to balance rights.

The **42nd Amendment, 1976** inserted **Part IV-A (Article 51-A)** with **10 duties**. The **86th Amendment, 2002** added an **11th duty** (parents' responsibility for child's education).

Today: **11 Fundamental Duties**. Non-justiciable (like DPSPs); but a statute can be passed compelling compliance with any duty (e.g., Prevention of Insults to National Honour Act 1971 enforces respect for Constitution + National Flag + Anthem).

8.2 The 11 Fundamental Duties — the text

It shall be the duty of every citizen of India — 1. To **abide by the Constitution** + respect its ideals + institutions + the **National Flag + National Anthem**. 2. To **cherish + follow the noble ideals** of our national freedom struggle. 3. To **uphold + protect the sovereignty, unity + integrity** of India. 4. To **defend the country** + render **national service** when called. 5. To **promote harmony + spirit of common brotherhood** amongst all people + renounce practices derogatory to women's dignity. 6. To **value + preserve the rich heritage** of our composite culture. 7. To **protect + improve the natural**

environment — forests, lakes, rivers, wildlife — + have compassion for living creatures. 8. To develop the **scientific temper, humanism + spirit of inquiry + reform**. 9. To **safeguard public property** + abjure violence. 10. To **strive towards excellence** in all spheres of individual + collective activity. 11. **(Added 2002)** To **provide opportunities for education** to one's child / ward between the ages of 6 and 14.

8.3 Memory palace — put the 11 duties on your daily route

Walk from your home to your exam centre. At each landmark, place one duty: 1. Gate of your home → Constitution + flag (you salute as you leave). 2. Neighbour's freedom-fighter photo → noble ideals of freedom struggle. 3. Border marker / police chowki → sovereignty + integrity. 4. Defence recruitment poster → defend the country. 5. Market with diverse traders → harmony + brotherhood. 6. Heritage monument in your town → rich culture. 7. Tree-lined road → environment. 8. Library / lab → scientific temper. 9. Govt office → safeguard public property. 10. Playground / classroom → strive for excellence. 11. Child at school gate → educate your child (added 2002).

Walk this mentally twice a day for a week; the duties become unforgettable.

8.4 Exam hooks

- **Part IV-A, Article 51-A** — only **one** article with 11 clauses.
- Added by **42nd Amendment, 1976** (Swaran Singh Committee).
- **11th duty** (education for one's child 6–14) added by **86th Amendment, 2002** — same amendment that made education a FR (Art 21A).
- FDs are **non-justiciable** but supported by statutes.
- Apply to **citizens** only (not foreigners).

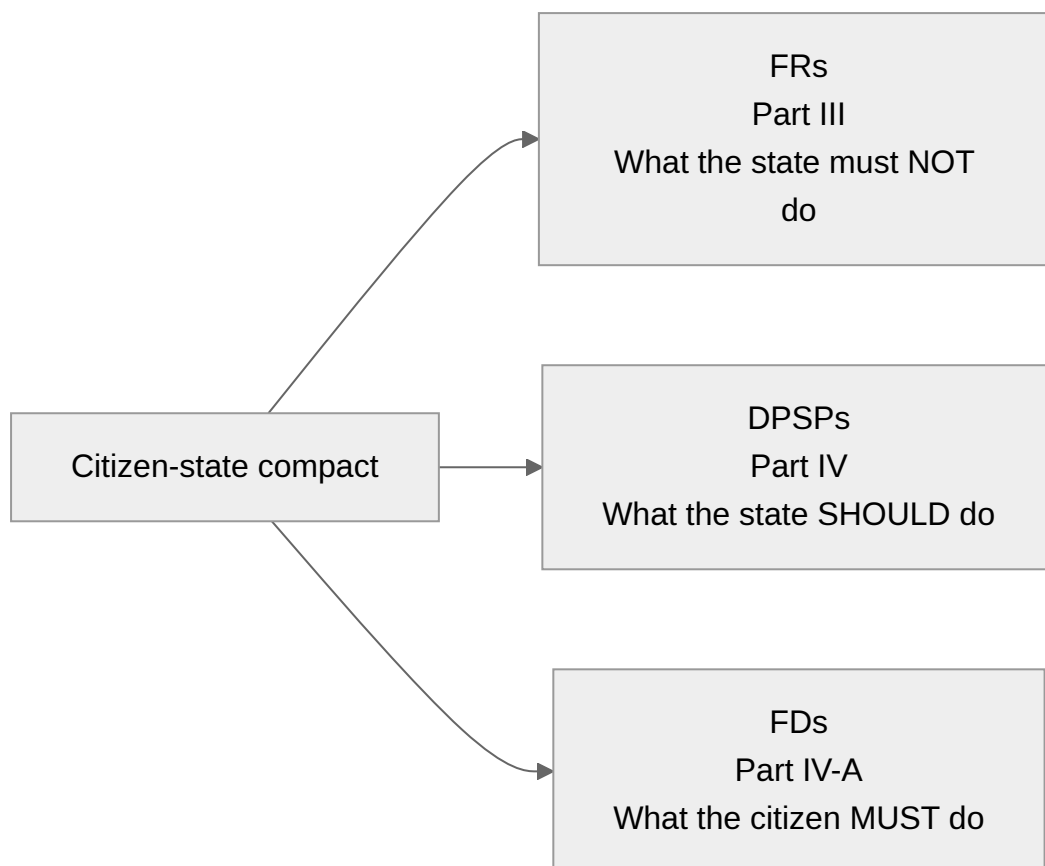
✓ KEY FACT

****Quick-recall: Fundamental Duties**** Eleven duties, all in one Article — 51-A. Added during the Emergency by the 42nd Amendment 1976 (Swaran Singh Committee recommended them). The 11th duty — parent's responsibility to educate their child aged 6 to 14 — was added by the 86th Amendment 2002. Non-justiciable, but courts cite them and Parliament enforces them through statutes (e.g., the Prevention of Insults to National Honour Act enforces duty #1 on the flag and anthem). Apply only to citizens, not to foreigners.

Chapter 9 — FRs + DPSPs + FDs — The Big Picture

You've just met the three sides of the citizen-state compact. Before moving to institutions (Parts C onwards), step back and see how they fit.

9.1 The three-legged stool



Each leg alone is unstable. FRs without DPSPs = rights but no welfare (*laissez-faire*). DPSPs without FRs = welfare without liberty (authoritarian welfare). Both without FDs = rights + welfare without a responsible citizenry. The three together are India's constitutional identity.

9.2 The harmonisation journey (from clash to cooperation)

Year	Moment	Direction
1951	<i>Champakam</i> → 1st Amdt	FR > DPSP
1971	25th Amdt → Art 31C	DPSP (Arts 39(b) + (c)) > FRs (14, 19)
1973	<i>Kesavananda</i>	Basic structure — any amendment limited
1976	42nd Amdt	Blanket DPSP > all FRs (overreach)
1980	<i>Minerva Mills</i>	Reset — harmonious construction ; both are basic structure
2007	<i>I.R. Coelho</i>	9th Schedule post-1973 laws open to review on basic structure

Bottom line: after *Minerva Mills*, FRs + DPSPs **cannot** be ranked one above the other by Parliament. They are to be **harmoniously construed**.

9.3 Revision test — Part B

Answer each in one sentence, without looking back at the preceding chapters.

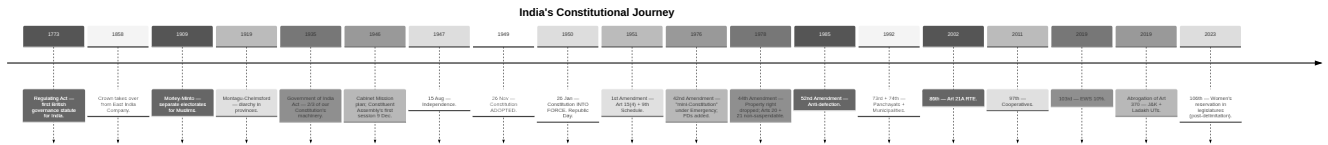
1. Which amendment inserted "Socialist" + "Secular" + "Integrity" into the Preamble?
2. Name the 7 Drafting Committee members.
3. Which case first laid down the "reasonable classification" test?
4. What is the 50% ceiling rule + which case laid it down?
5. Which amendment made education a Fundamental Right?
6. Which Article provides for a Uniform Civil Code?
7. Borrowed-from source for DPSPs?
8. 44th Amendment did **four** important things — list them.
9. Name 3 judicially-read-in rights under Art 21.
10. What is the "basic structure" doctrine + the case?

If you got 8+ right, move on. If less, re-read chapters 1 + 6 + 7.

The chapters above cover Parts A and B of the Constitution (the foundations and the citizen-state compact). The Union executive, Parliament, Supreme Court, State structures, Panchayati Raj, electoral bodies, Emergency provisions, amendments, Centre-State relations, and special provisions are all covered in full in the consolidated reference sections (PART X onwards) below — with every Article, every landmark case, and every exam-critical fact.

Appendices

Appendix A — Timeline (so far)



Appendix B — All 12 Schedules (at a glance)

1. States + UTs.
2. Salaries.
3. Oaths + affirmations.
4. RS seat allocation.
5. Scheduled Areas + STs (excluding 6th Sch states).
6. Tribal Areas of Assam/Meghalaya/Tripura/Mizoram.
7. Union / State / Concurrent Lists.
8. 22 languages.
9. 1st Amdt, 1951 — protected laws (post-1973 additions open to review).
10. 52nd Amdt, 1985 — Anti-defection.
11. 73rd Amdt, 1992 — 29 Panchayat subjects.
12. 74th Amdt, 1992 — 18 Municipality subjects.

Appendix C — Master Mnemonic Compendium (for easy recall in the exam hall)

- **FEAR-CC** → 6 FRs.
- **SAM-FROP** → 6 freedoms under Art 19.
- **LOUD FRIENDS-PIES** → 13 salient features.
- **PRANA DB** → CA workflow (Prasad, Rau, Ambedkar, Nehru, Ayyangar, Drafting + Patel, B. N. Rau).
- **A-A-A-M-S-M-K** → 7 Drafting Committee members.
- **GL-OC** → "State" under Art 12.
- **House-walk** → 12 Schedules memory palace.
- **Daily-route-walk** → 11 FDs memory palace.
- **Indira inserted S-S-I** → Socialist + Secular + Integrity (42nd Amdt to Preamble).
- **Justice-Liberty-Equality-Fraternity** → Preamble order (USSR-France-France-France).

Appendix D — One-page cheatsheet (save this)

- **Constitution adopted** 26 Nov 1949; **into force** 26 Jan 1950.
- Original: 395 Arts, 22 Parts, 8 Schedules. Today: ~448 / 25 / 12.
- Drafting Committee: **B.R. Ambedkar** (chair) + 6 members.
- Preamble = Objectives Resolution + polish. Added words 1976: Socialist, Secular, Integrity.
- **6 FRs** (7 → removed Property, 44th Amdt 1978).
- **Art 32** = "heart + soul".
- **FDs**: Art 51-A, Part IV-A, 11 duties (10 + 1 in 2002).
- **DPSPs**: Part IV, Arts 36–51, non-justiciable; from Ireland.
- **Basic structure**: Kesavananda 1973 (13 judges, 7:6).
- **Judicial review** = basic structure (Minerva Mills 1980).
- **Privacy** = FR (Puttaswamy 2017).
- **Federal** in form, **unitary** in bias. Cooperative federalism (Austin).
- **Parliamentary** system (UK). **Single citizenship**.
- Emergency: 352 (national), 356 (state), 360 (financial).
- Amendments: simple majority / special majority / special + state ratification.

End of Part B. All remaining topics — President, Parliament, judiciary, state bodies, emergency provisions, amendments, and Centre-State relations — are covered in the reference sections that follow.

PART X — ULTIMATE INDEX OF ARTICLES

(compressed)

Memorise these like phone numbers. Examiners ask "Article 32 deals with?" or "Which Article enables emergency over states?" — you must pick the correct option in <5 s.

Part I — UNION & TERRITORY (Art 1-4)

Art	Subject
1	Name & territory of India ("Union of States")
2	Admission/establishment of new states
3	Formation of new states + alteration of areas/boundaries/names
4	Laws under Art 2/3 NOT amendments under Art 368

Part II — CITIZENSHIP (Art 5-11)

Art	Subject
5	Citizenship at commencement (1950)
6	Migrants from Pakistan
7	Migrants TO Pakistan returning
8	Persons of Indian origin abroad
9	No dual citizenship
10	Continuance of rights
11	Parliament's power to regulate citizenship (Citizenship Act 1955)

Part III — FUNDAMENTAL RIGHTS (Art 12-35)

Art	Subject
12	Definition of "State"
13	Laws inconsistent with FRs are void
14	Equality before law

Art	Subject
15	Prohibition of discrimination on religion/race/caste/sex/place
16	Equality of opportunity in public employment
17	Abolition of untouchability
18	Abolition of titles
19	6 freedoms (speech, assembly, association, movement, residence, profession)
20	Protection in respect of conviction (no ex-post-facto, no double jeopardy, no self-incrimination)
21	Right to life and personal liberty
21A	Free education 6-14 yrs (added by 86th CAA, 2002)
22	Protection against arrest and detention
23	Prohibition of human trafficking + forced labour
24	Prohibition of child labour <14 yrs
25 - 28	Religious freedoms
29 - 30	Cultural & educational rights of minorities
31	Repealed (right to property — moved to Art 300A)
32	Right to constitutional remedies ("heart and soul" — Ambedkar). 5 writs: habeas corpus, mandamus, prohibition, certiorari, quo warranto
33	Modification of FRs for armed forces
34	Restriction on FRs during martial law
35	Parliament alone makes laws on FRs

Part IV — DPSP (Art 36-51)

Art	Subject
36-37	Definitions; non-justiciable
38	Welfare social order
39	Adequate livelihood, equal pay, no concentration of wealth
39A	Equal justice + free legal aid
40	Village panchayats

Art	Subject
41	Right to work, education, public assistance
42	Just + humane conditions of work
43	Living wage
43A	Workers' participation (42nd CAA)
43B	Promotion of cooperatives (97th CAA)
44	Uniform Civil Code
45	Free + compulsory ed for <6 yrs (after 86th CAA)
46	SC/ST educational + economic interests
47	Nutrition + standard of living + prohibition of intoxicants
48	Modern + scientific agriculture; preservation of cattle
48A	Environment + forests + wildlife (42nd CAA)
49	Protection of monuments
50	Separation of judiciary from executive
51	Promotion of international peace

Part IVA — Fundamental Duties (Art 51A) — 11 duties (added 42nd CAA 1976; 11th by 86th CAA 2002)

(a) abide by Constitution (b) cherish freedom-struggle ideals (c) sovereignty + integrity (d) defend country (e) promote harmony (f) value composite culture (g) protect environment (h) develop scientific temper (i) safeguard public property (j) strive for excellence (k) parents to educate children 6-14.

Part V — UNION (Art 52-151)

Executive (Art 52-78)

Art	Subject
52	President of India
53	Executive power vested in President
54-55	Election (Electoral College: MPs + MLAs of states + UTs with legislature; STV-PR)

Art	Subject
56-57	Term + re-election
58	Qualifications (citizen, 35 yrs, eligible for Lok Sabha)
60	Oath
61	Impeachment (special majority both Houses, only "violation of Constitution")
63-71	Vice-President (ex-officio Chairman of RS). Current VP = C.P. Radhakrishnan (15th, sworn in 12 Sep 2025) — succeeded Jagdeep Dhankhar who resigned 21 Jul 2025 citing health.
72	Pardon power
74	Council of Ministers (binding advice — 42nd + 44th CAAs clarified)
75	PM + CoM (max 15% of Lok Sabha — 91st CAA)
76	Attorney General
78	PM's duty to inform President

Parliament (Art 79-122)

Art	Subject
79	Parliament = President + 2 Houses
80	Rajya Sabha (max 250: 238 + 12 nominated)
81	Lok Sabha (max 552: 530 states + 20 UT after 104 CAA — Anglo-Indian nomination removed)
82	Readjustment after each census
83	Duration (RS permanent; LS 5 yrs)
86-87	President's address
89-95	Chairman/Speaker offices
100	Voting (Speaker votes only on tie)
108	Joint sitting (only non-money bills)
109-110	Money bills + definition
111	President's assent
112-117	Annual Budget
121	Restriction on discussing judges' conduct
122	Courts can't inquire into Parliament proceedings

Judiciary — SC (Art 124-147)

Art	Subject
124	SC; CJI + max 33 other judges (currently 34 total). Current CJI = Surya Kant (53rd, since 24 Nov 2025; term till 9 Feb 2027)
125	Salaries
129	Court of record
131	Original jurisdiction (Centre-state disputes)
132 - 134A	Appellate (constitutional/civil/criminal)
136	Special Leave to Appeal (SLP)
137	Review own judgment
141	Law declared by SC binding on all courts
142	Power to do complete justice
143	Advisory jurisdiction (President's reference)
144	Aid to SC by all authorities

CAG (148-151) — term 6 yrs / 65 yrs. **Current CAG = K. Sanjay Murthy (15th, since 21 Nov 2024).**

Part VI — STATES (152-237)

Art	Subject
153-156	Governor (5 yrs; pleasure of President)
161	Pardon power
163-164	CoM aids Governor; CM appointed
168	State Legislature constitution
169	Abolition / creation of LCs
170	Legislative Assembly (max 500, min 60)
171	Legislative Council (max 1/3 of LA, min 40)
172	Duration (LA 5; LC permanent)
200-201	Bills assent (Governor or reserve for President)
213	Governor's ordinance power

Art	Subject
214-237	High Courts

Parts VIII-XI — UTs / Panchayats / Municipalities

Art	Subject
239AA	Special status of Delhi (NCT)
243-243-O	Panchayats (73rd CAA) — Gram Sabha, structure, reservation, term
243P-ZG	Municipalities (74th CAA)

Part XII — Finance (264-300A)

Art	Subject
265	No tax without authority of law
266	Consolidated Fund + Public Account
267	Contingency Fund
280	Finance Commission (5 yrs)
300A	Right to property (legal right since 44th CAA, 1978)

Part XIV — Services (308-323)

Art	Subject
311	Procedural safeguards (notice + inquiry before dismissal)
312	All-India Services
315-323	PSCs (UPSC, SPSC, JPSC)

Part XV — Elections

Art	Subject
324	Election Commission of India
325-326	No discrimination; adult suffrage (18 yrs after 61st CAA)

Part XVI — SC/ST/OBC (330-342A)

Art	Subject
330, 332	SC/ST seats reservation (LS, state assemblies)
334	Time limit on reservation (104th CAA till 2030)
338-338B	NCSC, NCST, NCBC
340	Backward classes Commission
341, 342, 342A	SC/ST/SEBC lists

Part XVII — Languages (343-351)

Art	Subject
343	Hindi (Devanagari) — Union official; English continues
348	Language of SC/HC + bills (English)
351	Develop Hindi

Part XVIII — Emergency (352-360)

Art	Subject
352	National Emergency (war/external aggression/armed rebellion)
356	President's Rule in state (failure of constitutional machinery)
360	Financial Emergency (never declared)

Part XX — Amendment

Art	Subject
368	Procedure (simple/special/special+state ratification)

Part XXI — Special Provisions

Art	Subject
370	Special status of J&K (abrogated 5 Aug 2019)
371	Maharashtra, Gujarat
371A-J	Nagaland, Assam, Manipur, AP+TG, Sikkim, Mizoram, AP, Goa, Hyd-KA

PART Y — ALL 12 SCHEDULES

#	Subject	Memory peg
1st	States + UTs + their territories	"States list"
2nd	Salaries — President, Governors, Speaker, CJI, judges, CAG	"Pay packets"
3rd	Forms of oaths/affirmations	"Oaths"
4th	Allocation of seats in Rajya Sabha (state-wise)	"RS seats"
5th	Administration of Scheduled Areas + STs (mainland)	"ST areas"
6th	Tribal areas in Assam, Meghalaya, Tripura, Mizoram (autonomous district councils)	"NE tribes"
7th	3 lists — Union, State, Concurrent	"U/S/C lists"
8th	22 official languages	"Languages"
9th	Acts protected from judicial review (1st CAA, 1951) — but post-24 Apr 1973 laws subject to basic structure (Coelho 2007)	"Land-reforms shield"
10th	Anti-defection law (52nd CAA 1985)	"Defection"
11th	Panchayats — 29 subjects (73rd CAA)	"Village"
12th	Municipalities — 18 subjects (74th CAA)	"Urban"

8th Schedule additions

- 1950: 14 languages (Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Malayalam, Marathi, Odia, Punjabi, Sanskrit, Tamil, Telugu, Urdu)
- 21st CAA (1967): Sindhi → 15
- 71st CAA (1992): Konkani, Manipuri, Nepali → 18
- 92nd CAA (2003): Bodo, Dogri, Maithili, Santhali → **22 total**

PART Z — KEY CONSTITUTIONAL AMENDMENTS

(must memorise)

Amendment	Year	Subject
1st	1951	9th Schedule added; Art 19 reasonable restrictions; saving land - reform laws
7th	1956	Reorganisation of states on linguistic basis
9th	1960	Berubari Union — territorial transfer to Pakistan
10th - 14th	1961 - 62	Dadra - Nagar - Haveli, Goa, Puducherry incorporated
21st	1967	Sindhi added to 8th Schedule
24th	1971	Parliament's power to amend any part incl. FRs
26th	1971	Abolished privy purses
31st	1973	Lok Sabha strength raised to 545
35th - 36th	1974 - 75	Sikkim association → full state
39th	1975	PM's election outside judicial review (later struck)
42nd	1976	"Mini Constitution" — Socialist, Secular, Integrity in Preamble; FDuties (51A); 7 DPSPs added; education + forests to Concurrent
44th	1978	Reverted 42nd; right to property — FR → 300A; Art 20, 21 not suspendable; "armed rebellion" replaced "internal disturbance" in Art 352
52nd	1985	Anti-defection (10th Schedule)
61st	1988	Voting age 21 → 18
65th	1990	NCSCST
69th	1991	Special status to Delhi (Art 239AA)
71st	1992	Konkani, Manipuri, Nepali → 8th Schedule
73rd	1993	Panchayati Raj (11th Schedule)
74th	1993	Municipalities (12th Schedule)
86th	2002	Art 21A free education 6 - 14 yrs (FR); Art 51A(k) added
89th	2003	Bifurcated NCSC + NCST
91st	2003	CoM size capped at 15% LS; defection rule strengthened

Amendment	Year	Subject
92nd	2003	Bodo, Dogri, Maithili, Santhali → 22 langs
93rd	2005	Reservation in private (incl. unaided) educational institutions
97th	2011	Cooperative societies → FR + DPSP 43B + Part IXB
99th	2014	NJAC (struck down 2015)
100th	2015	India - Bangladesh land boundary
101st	2016	GST (Art 246A, 269A, 279A; GST Council)
102nd	2018	NCBC constitutional status (Art 338B)
103rd	2019	10% EWS reservation (Art 15(6), 16(6))
104th	2019	SC/ST reservation extended 10 yrs (till 2030); Anglo-Indian nomination abolished
105th	2021	States' power to identify SEBCs restored
106th	2023	Women's Reservation 33% (LS + State Assemblies) — operative after delimitation

As of Apr 2026: 106 amendments total (no 107th passed yet). Pending: 131st Constitutional Amendment Bill 2026 (Delimitation).

PART AA — LANDMARK SUPREME COURT CASES (40+)

Case	Year	Significance
A.K. Gopalan v. State of Madras	1950	Narrow Art 21 ("procedure established by law")
Sankari Prasad v. Union	1951	Parliament can amend FRs
Berubari Union case	1960	Preamble not part of Constitution; territorial transfer needs CAA
Golaknath v. State of Punjab	1967	Parliament CANNOT amend FRs (overruled)
R.C. Cooper v. Union (Bank Nationalisation)	1970	Property rights — modified by 25th CAA
Madhav Rao Scindia v. Union	1971	Privy purses cannot be abolished by executive (later 26th CAA)
Kesavananda Bharati v. State of Kerala	1973	Basic Structure Doctrine
Indira Gandhi v. Raj Narain	1975	39th CAA struck — basic structure
A.D.M. Jabalpur (Habeas Corpus)	1976	Art 21 suspendable in emergency (later overruled by Puttaswamy)
Maneka Gandhi v. Union	1978	Art 21 — procedure must be just, fair + reasonable
Minerva Mills v. Union	1980	Art 31C struck (parts); harmony between FR + DPSP = basic structure
Waman Rao v. Union	1981	Pre-24-Apr-1973 amendments immune
S.P. Gupta v. Union (1st Judges)	1981	Executive primacy + PIL formalised
Bandhua Mukti Morcha v. Union	1984	Right to dignified life — bonded labour
Bhim Singh v. State of J&K	1985	Compensation for unlawful detention
Mohd. Ahmed Khan v. Shah Bano	1985	Maintenance under Sec 125 CrPC
Olga Tellis v. Bombay Municipal Corp	1985	Right to livelihood (Art 21) — pavement dwellers

Case	Year	Significance
M.C. Mehta cases	1986+	Environmental jurisprudence (Oleum gas leak; Ganga; Taj; vehicular emissions)
Indira Sawhney v. Union (Mandal)	1992	OBC reservation 27%; creamy layer; ceiling 50%
S.R. Bommai v. Union	1994	Limits on Art 356; secularism = basic structure
Vishaka v. State of Rajasthan	1997	Sexual harassment guidelines (later POSH Act 2013)
2nd & 3rd Judges cases	1993, 1998	Collegium system
Coelho v. State of TN	2007	9th-Schedule laws after 24 Apr 1973 subject to basic structure review
Naz Foundation → Suresh Koushal → Navtej Singh Johar	2009 - 2018	Sec 377 IPC — homosexuality decriminalised 2018
PUCL v. Union	2003	Right to know voters' info
Aruna Shanbaug case	2011	Passive euthanasia
Lily Thomas v. Union	2013	Convicted MPs/MLAs immediately disqualified
NALSA v. Union	2014	Transgender as third gender
Shreya Singhal v. Union	2015	Sec 66A IT Act struck (free speech)
NJAC case	2015	99th CAA + NJAC struck — collegium retained
Shayara Bano v. Union (Triple Talaq)	2017	Instant triple talaq unconstitutional
Puttaswamy v. Union	2017	Right to Privacy as FR (Art 21)
Aadhaar case (Puttaswamy II)	2018	Aadhaar constitutional; mandatory only for govt subsidies + IT returns
Joseph Shine v. Union	2018	Sec 497 IPC (adultery) struck
Sabarimala (Indian Young Lawyers)	2018	Women of all ages allowed (under review)
Maratha Reservation (Jaishri Patil)	2021	50% ceiling reaffirmed
Madras Bar Association v. Union	2020	Tribunal Reform — independence
Pegasus (Manohar Lal Sharma v. Union)	2021	Privacy + surveillance — committee appointed

Case	Year	Significance
Vivek Narayan Sharma (Demonetisation)	2023	4:1 majority — demonetisation procedurally legal
Anoop Baranwal (CEC + EC appointment)	2023	Selection committee = PM + LoP + CJI till Parliament makes law
In re: Article 370	2023	Abrogation of Art 370 upheld
Supriyo v. Union (Same-Sex Marriage)	2023	No FR; legislature's domain
ADR v. Union (Electoral Bonds)	2024	Electoral Bonds Scheme struck — violates Art 19(1)(a)
Bilkis Bano case	2024	Premature release of 11 convicts cancelled
Gayatri Balasamy v. ISG Novasoft	May 2025	5-judge bench (4:1) — appellate courts may modify arbitral awards in limited circumstances
Confederation of Real Estate Developers v. Vanashakti	2025	3-judge bench — retrospective environmental clearances allowed only for "permissible activities"
All India Judges Assn. v. Union (3-yr practice rule)	May 2025	Restored 3-year minimum legal-practice requirement for civil judge eligibility
In re: Waqf (Amendment) Act 2025	Sep 2025	Interim ruling by CJI Gavai + Justice Masih — refused general stay; stayed Section 3(r) (5-yr practising-Islam requirement to create Waqf)

PART AB — PRESIDENTS, PMs, CJIs, SPEAKERS

All Presidents of India (15)

#	Name	Tenure	Notable
1	Dr. Rajendra Prasad	1950-62	Only 2-term President
2	Dr. Sarvepalli Radhakrishnan	1962-67	Philosopher; Bharat Ratna 1954
3	Dr. Zakir Husain	1967-69	Died in office (first to die in office)
4	V.V. Giri	1969-74	First independent (non-Congress)
5	Fakhruddin Ali Ahmed	1974-77	Died in office; signed Emergency proclamation
6	Neelam Sanjiva Reddy	1977-82	First unanimously elected
7	Giani Zail Singh	1982-87	First Sikh President
8	R. Venkataraman	1987-92	
9	Dr. Shankar Dayal Sharma	1992-97	
10	K.R. Narayanan	1997-2002	First Dalit President
11	Dr. A.P.J. Abdul Kalam	2002-07	Missile Man
12	Pratibha Patil	2007-12	First woman President
13	Pranab Mukherjee	2012-17	
14	Ram Nath Kovind	2017-22	Second Dalit President
15	Droupadi Murmu	2022-present	First tribal President; second woman

All Vice-Presidents of India (recent — high PYQ)

#	Name	Tenure	Notable
13	M. Venkaiah Naidu	2017-22	
14	Jagdeep Dhankhar	2022-2025	Resigned 21 Jul 2025 citing health; 3rd VP to resign before end of term; first whose resignation triggered midterm VP election
15	C.P. Radhakrishnan	12 Sep 2025 – present	Won VP election 9 Sep 2025 by 152-vote margin; former Governor of Maharashtra + Jharkhand; ex-MP Coimbatore

All Prime Ministers of India

#	Name	Tenure	Party / Notable
1	Jawaharlal Nehru	1947-64	INC; longest PM (16+ yrs)
(acting)	Gulzarilal Nanda	1964 + 1966	INC
2	Lal Bahadur Shastri	1964-66	INC; "Jai Jawan Jai Kisan"
3	Indira Gandhi	1966-77 + 1980-84	INC; bank nationalisation, Bangladesh war, Emergency
4	Morarji Desai	1977-79	Janata; first non-Congress PM; oldest at PM (81)
5	Charan Singh	1979-80	Janata (S); never faced Parliament
6	Rajiv Gandhi	1984-89	INC; youngest PM (40)
7	V.P. Singh	1989-90	JD; Mandal Commission
8	Chandra Shekhar	1990-91	JD-S
9	P.V. Narasimha Rao	1991-96	INC; LPG reforms
10	Atal Bihari Vajpayee	1996 (13 days) + 1998-2004	BJP; Pokhran-II, Kargil, Golden Quadrilateral
11	H.D. Deve Gowda	1996-97	JD-Front
12	I.K. Gujral	1997-98	JD; "Gujral doctrine"
13	Manmohan Singh	2004-14	INC-UPA; first Sikh PM; LPG architect
14	Narendra Modi	2014-present	BJP-NDA; longest-serving non-INC PM (3rd term 2024+)

Recent Chief Justices of India

#	Name	Tenure
47	T.S. Thakur	2015-17
48	J.S. Khehar	2017
49	Dipak Misra	2017-18
50	Ranjan Gogoi	2018-19
51	S.A. Bobde	2019-21

#	Name	Tenure
52	N.V. Ramana	2021 - 22
53 (was 53rd in old numbering)	U.U. Lalit	2022
54	D.Y. Chandrachud	2022 - 24
55	Sanjiv Khanna	2024 - 25
52	B.R. Gavai	May 2025 – Nov 2025
53	Surya Kant	24 Nov 2025 – 9 Feb 2027 (current, 15 - month term)

Speakers of Lok Sabha (since Independence)

Speaker	Lok Sabha
G.V. Mavalankar	1st (1952 - 56)
M.A. Ayyangar	1st - 2nd (1956 - 62)
Hukam Singh	3rd (1962 - 67)
N. Sanjiva Reddy	4th + 6th (only 2 - term Speaker)
Gurdial Singh Dhillon	4th - 5th
Bali Ram Bhagat	5th
K.S. Hegde	6th
Bal Ram Jakhar	7th - 8th
Rabi Ray	9th
Shivraj Patil	10th
P.A. Sangma	11th
G.M.C. Balayogi	12th - 13th (died in office)
Manohar Joshi	13th
Somnath Chatterjee	14th
Meira Kumar	15th — first woman Speaker
Sumitra Mahajan	16th
Om Birla	17th - 18th (current)

PART AC — POLITY TRAP-RECOGNITION CARDS

These are the wrong answers that are designed to look right. Know them cold.

Wrong answer the exam wants you to pick	Correct answer	The distinction
DPSPs are enforceable in court	NOT enforceable	Only FRs are justiciable
Art 226 (HC writs) is a Fundamental Right	Art 32 is the FR	Art 226 is wider but is NOT itself a FR
Art 370 still applies to J&K	Abrogated in August 2019	J&K and Ladakh became UTs
8th Schedule originally had 22 languages	Originally 14, now 22	Sindhi added 1967 (21st Amdt), 3 in 1992 (71st), 4 in 2003 (92nd)
Any Bill can be introduced in either House	Money Bill — only Lok Sabha	RS can only recommend, not reject a Money Bill
42nd Amendment was pro-citizen	42nd was Emergency-era overreach	44th Amendment (1978) reversed most 42nd excesses
Gulzarilal Nanda was PM (full term)	Acting PM twice (died in office)	He served as caretaker, never won a PM election
Preamble was always part of the Constitution	No — Berubari (1960) said it wasn't	Kesavananda (1973) settled it: YES it is
Basic Structure is a fixed list	NOT exhaustive	SC has added to it over decades (privacy, secularism, federalism)
OCI card = dual citizenship	OCI is NOT dual citizenship	OCIs cannot vote, hold passport, or serve in constitutional offices
Art 356 (President's Rule) can last forever	Maximum 3 years (with extensions)	Each extension needs Parliament's approval every 6 months after 1 year
CAA 2019 removes citizenship from Indian Muslims	It does NOT affect existing citizens	CAA only adds a fast-track path for non-Muslim migrants from 3 countries
DPSPs are borrowed from USA	Borrowed from Ireland	Ireland → Spain → India; USA gave FRs
Rajya Sabha can be dissolved	RS is a permanent House	Only Lok Sabha can be dissolved; RS members retire by rotation
Speaker is elected by all of Parliament	Elected by Lok Sabha members only	RS elects its own Chairman (VP is ex-officio)

PART AD — POLITY MINI-MOCK (25 Questions · 25 Minutes)

Set a 25-minute timer. Do not look back at the book. Answer in your head or on paper. Check the answer key at the end.

1. Which of the following was NOT in the original Preamble of 1950?

(a) Sovereign (b) Democratic (c) Secular (d) Republic

2. The Drafting Committee of the Constituent Assembly was chaired by:

(a) Jawaharlal Nehru (b) Rajendra Prasad (c) B.R. Ambedkar (d) Sardar Patel

3. The "Objectives Resolution" was moved in the Constituent Assembly by:

(a) Dr. Rajendra Prasad (b) Jawaharlal Nehru (c) B.R. Ambedkar (d) B.N. Rau

4. Which Article of the Constitution defines "State" for the purpose of Fundamental Rights?

(a) Art 11 (b) Art 12 (c) Art 13 (d) Art 14

5. Right to Property was removed from the list of Fundamental Rights by which Amendment?

(a) 42nd Amendment (b) 44th Amendment (c) 45th Amendment (d) 46th Amendment

6. The "basic structure" doctrine was established in which landmark case?

(a) Golaknath v. State of Punjab (1967) (b) Maneka Gandhi v. UoI (1978) (c) Kesavananda Bharati v. State of Kerala (1973) (d) Minerva Mills v. UoI (1980)

7. Which Article provides for the Right to Constitutional Remedies, called the "heart and soul" of the Constitution?

(a) Art 19 (b) Art 21 (c) Art 32 (d) Art 226

8. Fundamental Duties (Part IV-A) were added by which Amendment?

(a) 40th Amendment (b) 42nd Amendment (c) 44th Amendment (d) 52nd Amendment

9. How many languages are currently listed in the 8th Schedule?

(a) 14 (b) 18 (c) 22 (d) 24

10. The Anti-Defection Law is contained in which Schedule of the Constitution?

(a) 8th Schedule (b) 9th Schedule (c) 10th Schedule (d) 11th Schedule

11. Which Amendment lowered the voting age from 21 to 18?

(a) 52nd Amendment (b) 58th Amendment (c) 61st Amendment (d) 73rd Amendment

12. Panchayati Raj institutions were given constitutional status by:

(a) 72nd and 73rd Amendments (b) 73rd and 74th Amendments (c) 74th and 75th Amendments (d) 71st and 72nd Amendments

13. Article 21A (free and compulsory education for children aged 6–14) was inserted by:

(a) 73rd Amendment (1992) (b) 86th Amendment (2002) (c) 91st Amendment (2003) (d) 93rd Amendment (2005)

14. Under Article 356, the President's Rule in a state lasts initially for:

(a) 2 months (b) 3 months (c) 6 months (d) 12 months

15. The 7th Schedule of the Constitution deals with:

(a) Anti-defection (b) Languages (c) Union, State, and Concurrent Lists (d) Scheduled Areas

16. The Directive Principles of State Policy (Part IV) were borrowed primarily from:

(a) UK Constitution (b) US Constitution (c) Irish Constitution (d) Canadian Constitution

17. Which writ literally means "you may have the body"?

(a) Mandamus (b) Certiorari (c) Habeas Corpus (d) Prohibition

18. The Citizenship (Amendment) Act 2019 grants fast-track citizenship to persecuted non-Muslim minorities from which three countries?

(a) Nepal, Bhutan, Sri Lanka (b) Pakistan, Afghanistan, Bangladesh (c) China, Myanmar, Afghanistan (d) Pakistan, Nepal, Bangladesh

19. Which of the following is a constitutional body?

(a) NITI Aayog (b) National Human Rights Commission (c) Election Commission of India (d) Central Vigilance Commission

20. The Indra Sawhney case (1992) is associated with:

(a) Freedom of speech (b) OBC reservations and the 50% ceiling (c) Environmental protection (d) Right to privacy

21. Under which Article does the Supreme Court exercise its original jurisdiction in inter-state disputes?

(a) Art 131 (b) Art 132 (c) Art 136 (d) Art 143

22. "Procedure established by law" in Article 21 was interpreted to mean "fair, just, and reasonable procedure" after which case?

(a) A.K. Gopalan v. Madras (1950) (b) Maneka Gandhi v. UoI (1978) (c) Vishaka v. State of Rajasthan (1997) (d) Puttaswamy v. UoI (2017)

23. The 101st Constitutional Amendment (2016) introduced:

(a) EWS reservation (b) GST (c) Women's reservation (d) OBC reservation in promotion

24. Which Schedule lists the 29 subjects transferred to Panchayats?

(a) 9th Schedule (b) 10th Schedule (c) 11th Schedule (d) 12th Schedule

25. The right to privacy was declared a Fundamental Right under Article 21 in which judgment?

(a) Shreya Singhal v. UoI (2015) (b) Common Cause v. UoI (2018) (c) Justice K.S. Puttaswamy v. UoI (2017) (d) Navtej Johar v. UoI (2018)

Answer Key

1-c | 2-c | 3-b | 4-b | 5-b | 6-c | 7-c | 8-b | 9-c | 10-c | 11-c | 12-b | 13-b | 14-c | 15-c | 16-c | 17-c | 18-b | 19-c | 20-b | 21-a | 22-b | 23-b | 24-c | 25-c

Score: 23–25 = Excellent · 18–22 = Good, revise weak areas · Below 18 = Re-read Part B (Chapters 5–9) before moving on.

⚠ EXAM ALERT

****Error-log rule:**** For every question you got wrong, write one sentence explaining what you missed. Retest yourself on only those questions 3 days later — without looking at the solution. Re-reading alone does not fix the gap; active recall does.

PART AE — CONSTITUTIONAL vs STATUTORY vs EXECUTIVE BODIES

Examiners ask "Is X a constitutional body?" 1-2 marks per Polity section. Memorise.

Constitutional bodies (created by the Constitution)

Body	Article
President	Art 52
Vice-President	Art 63
Council of Ministers	Art 74-75
Attorney General	Art 76
Comptroller & Auditor General (CAG)	Art 148
Supreme Court	Art 124
High Courts	Art 214
Election Commission	Art 324
Finance Commission	Art 280
Union Public Service Commission (UPSC)	Art 315
State Public Service Commission (SPSC)	Art 315
Joint Public Service Commission	Art 315
Inter-State Council	Art 263
National Commission for SC	Art 338
National Commission for ST	Art 338A
National Commission for Backward Classes (NCBC)	Art 338B (102nd CAA, 2018)
Goods and Services Tax Council (GST Council)	Art 279A (101st CAA, 2016)
Special Officer for Linguistic Minorities	Art 350B
Advocate General of State	Art 165
State Election Commission	Art 243K, 243ZA

Body	Article
State Finance Commission	Art 243I

Statutory bodies (created by Acts of Parliament/State legislature)

Body	Act	Year
Reserve Bank of India (RBI)	RBI Act	1934 (founded 1935)
Securities and Exchange Board of India (SEBI)	SEBI Act	1992 (statutory; founded 1988 as non-statutory)
National Human Rights Commission (NHRC)	Protection of Human Rights Act	1993
State Human Rights Commission (SHRC)	same Act	1993
National Commission for Women (NCW)	NCW Act	1990
National Commission for Minorities	NCM Act	1992
National Commission for Protection of Child Rights (NCPCR)	CPCR Act	2005
Central Information Commission (CIC)	RTI Act	2005
State Information Commission (SIC)	RTI Act	2005
Central Vigilance Commission (CVC)	CVC Act	2003 (statutory; founded 1964 by Gol)
Central Bureau of Investigation (CBI)	Delhi Special Police Establishment Act	1946
Lokpal	Lokpal & Lokayuktas Act	2013. Current Chairperson = Justice A.M. Khanwilkar (2nd Lokpal)
Lokayuktas (states)	state Acts	varies
National Green Tribunal (NGT)	NGT Act	2010
Income Tax Appellate Tribunal (ITAT)	Income Tax Act	1941
National Disaster Management Authority (NDMA)	DM Act	2005

Body	Act	Year
National Investigation Agency (NIA)	NIA Act	2008
Telecom Regulatory Authority of India (TRAI)	TRAI Act	1997
Insurance Regulatory & Development Authority (IRDAI)	IRDA Act	1999
Pension Fund Regulatory & Development Authority (PFRDA)	PFRDA Act	2013
Food Safety & Standards Authority of India (FSSAI)	FSSA Act	2006
Forward Markets Commission (FMC)	FCR Act 1952 (merged with SEBI 2015)	—
Insolvency & Bankruptcy Board of India (IBBI)	IBC	2016
Real Estate Regulatory Authority (RERA)	RERA Act	2016
Petroleum & Natural Gas Regulatory Board (PNGRB)	PNGRB Act	2006
Atomic Energy Regulatory Board (AERB)	Atomic Energy Act	1962 (founded 1983)
Securities Appellate Tribunal (SAT)	SEBI Act	—
Competition Commission of India (CCI)	Competition Act	2002
National Company Law Tribunal (NCLT)	Companies Act	2013
Wildlife Crime Control Bureau (WCCB)	WLPA amendment	2007

Executive bodies (created by executive resolution / order — NOT statutory NOR constitutional)

Body	Year	Role
NITI Aayog	2015	Policy think-tank (replaced Planning Commission)

Body	Year	Role
Planning Commission (1950-2014)	1950	Was an executive body too
National Development Council (NDC)	1952	(now defunct after Planning Commission abolished)
National Investigation Agency	2008	(NOTE: NIA is statutory; replace this row in your mind with Pradhan Mantri Office, etc.)
PM's Office (PMO)	—	Executive
Cabinet Secretariat	—	Executive
Chief Vigilance Officer (CVO) network	—	Executive
Inter-State Council (NOTE: actually constitutional under Art 263)	—	—
National Investigation Agency	2008	Statutory under NIA Act
National Security Council (NSC)	1998	Executive (advises PM on security)
Strategic Policy Group, Joint Intelligence Committee	various	Executive sub-groups of NSC
National Statistical Commission (NSC)	2005	(Statutory in early plans, currently executive)

Quasi-Judicial bodies

- **Tribunals** (Art 323A under 42nd CAA + 323B): NCLT, ITAT, CAT (Central Administrative Tribunal), SAT, NGT, DRT (Debt Recovery Tribunal), AFT (Armed Forces Tribunal), TDSAT (Telecom Disputes), Election Commission (in poll-disputes), Lokpal.
- **Regulators** that double as quasi-judicial: SEBI, TRAI, IRDAI, PFRDA, CCI, RERA.

Key cross-checks (high-PYQ traps)

Body	Type	Key trap
NHRC	Statutory	Often mistakenly called constitutional
NCW	Statutory	NOT constitutional
SEBI	Statutory since 1992	Founded 1988 as non-statutory
CVC	Statutory since 2003	Founded 1964 as executive
NCBC	Constitutional since 2018 (102nd CAA)	Was statutory before
Lokpal	Statutory	NOT constitutional (yet)

Body	Type	Key trap
Election Commission	Constitutional (Art 324)	NOT statutory
RBI	Statutory	NOT constitutional
CAG	Constitutional (Art 148)	Often confused
NITI Aayog	Executive (Cabinet resolution)	NOT statutory NOR constitutional
Planning Commission	Executive	NOT statutory NOR constitutional
CBI	Statutory (DSPE Act 1946)	Can be loosely called executive
NCSC, NCST	Constitutional (Art 338, 338A)	Differ from NCM, NCBC origin
NCM	Statutory (NCM Act 1992)	NOT constitutional
GST Council	Constitutional (Art 279A)	Created by 101st CAA
State Finance Commission	Constitutional (Art 243I)	Created by 73rd CAA

PART AF — PARLIAMENTARY DEVICES + PROCEDURES

(high-PYQ)

Parliamentary motions

Motion	Purpose	Need - majority
Adjournment Motion	Discuss matter of urgent public importance; only in Lok Sabha; censure on govt; needs 50 members support	Simple
No - Confidence Motion	Removal of govt; LS only; needs 50 members support	Simple
Confidence Motion	Govt asks LS to confirm support	Simple
Censure Motion	Criticism of govt or minister; doesn't lead to fall	Simple
Cut Motions	Reduce demand for grants — Policy cut (₹1), Economy cut (specific amount), Token cut (₹100)	Simple
Privilege Motion	Breach of parliamentary privilege	Simple
Calling Attention	Draw minister's attention to urgent matter	(procedural)
Half - an - Hour Discussion	On answer to a question	(procedural)
Short Duration Discussion (2 hrs)	On urgent issue not requiring formal motion	(procedural)
Resolution	Statement of opinion (private member's, govt, or statutory)	Simple

Special parliamentary devices

- **Question Hour** (1 hr daily, 1100-1200) — Starred (oral, supplementary allowed), Unstarred (written), Short Notice.
- **Zero Hour** (after Question Hour, 1200-1300) — Indian innovation; raise matters without notice; ends with lunch.
- **Whip** — written order from party to MPs; 3 types (one-line = inform, two-line = attend, three-line = vote with party); violation can lead to defection disqualification.
- **Lame Duck Session** — last session of an outgoing Lok Sabha after fresh elections.
- **Quorum** — 1/10 of total strength of House; ~55 in Lok Sabha, 25 in Rajya Sabha.

Sessions of Parliament

- **Budget Session** (Feb-May) — longest; presents budget on 1 Feb.

- **Monsoon Session** (Jul-Aug).
- **Winter Session** (Nov-Dec).
- Maximum gap between sessions: **6 months**.
- Summoned by President under Art 85.

Bills

Type	Article	Quirks
Ordinary Bill	Art 107 - 108	Can originate in either House; if disagreement, joint sitting under Art 108
Money Bill	Art 110	Only LS; RS can only recommend amendments (within 14 days); if disagreement, LS can override; certified by Speaker
Financial Bill (Cat I — Art 117(1))	(similar to Money Bill)	Originates in LS; Speaker doesn't certify as Money Bill but contains money provisions
Financial Bill (Cat II — Art 117(3))	LS or RS	Just impacts Consolidated Fund
Constitutional Amendment Bill	Art 368	Special majority (2/3 of present + voting AND ½ of total membership); some need state ratification by ½ states

Speaker / Chairman special powers

- **Speaker decides** what is a Money Bill (final, not subject to court review).
- **Speaker decides** anti-defection cases under 10th Schedule (subject to judicial review per Kihoto Hollohan 1992).
- **Casting vote** only in case of tie.
- **Continues till next LS** elects new Speaker.

Anti-Defection Law (10th Schedule, 52nd CAA 1985)

Disqualification grounds for MP/MLA: 1. Voluntarily giving up party membership. 2. Voting against party whip (without prior permission, no condonation within 15 days). 3. Independent member joining a party. 4. Nominated member joining a party 6 months after taking seat.

Exception (post-91st CAA 2003): merger of 2/3 of legislators in a party with another party — no disqualification.

Decided by: Speaker/Chairman (subject to judicial review per Kihoto Hollohan 1992).

PART AG — UNION + STATE GOVERNMENT BODIES (compressed)

Major Indian commissions / committees (recurring PYQ)

Body / Commission	Established	Role
Sarkaria Commission	1983	Centre-State relations
Punchhi Commission	2007	Centre-State relations (revisited)
Mandal Commission	1979	OBC reservation; report 1980; implemented 1990
Nanavati Commission	1984 + 2002	Sikh riots, Godhra
Liberhan Commission	1992	Babri Masjid demolition
Sri Krishna Commission	1992	Mumbai riots
Justice Verma Committee	2012	After Nirbhaya — anti-rape law reforms
Vohra Committee	1993	Politicisation of crime
Phoolka Commission	1984	Sikh riots Delhi
National Commission to Review Working of Constitution (NCRWC)	2000-02 (Justice M.N. Venkatachaliah)	Constitutional review
Nariman Committee	2002	Judicial appointments

Chief Election Commissioner appointment (recent change)

Pre-2023: appointed by President on advice of CoM. Post-Anoop Baranwal 2023: SC ruled selection committee = PM + LoP + CJI till Parliament makes law. 2023 Act passed: replaced CJI with a Cabinet Minister (PM + LoP + Cabinet Minister) — challenged in court 2024.

Recent Acts of Parliament 2024-25 (high PYQ)

2024 — 16 Bills passed

- **Public Examinations (Prevention of Unfair Means) Act, 2024** — anti-paper-leak; 3-10 yr imprisonment; ₹1 cr fine.
- **Bharatiya Vayuyan Vidheyak (Aircraft) Act, 2024** — re-enacts the colonial Aircraft Act 1934.

- **Water (Prevention & Control of Pollution) Amendment Act, 2024** — decriminalises minor violations; ease of doing business.
- **J&K Local Bodies Laws (Amendment) Act, 2024** — OBC reservation in J&K Panchayati Raj + Municipal Acts.

2025 — 39 Bills passed

- **Waqf (Amendment) Act, 2025** — improves management of waqf properties; controversial Section 3(r) (5-yr practising-Islam requirement) stayed by SC Sep 2025.
- **Jan Vishwas (Amendment of Provisions) Act, 2025** — amends 17 laws; decriminalises offences across municipal governance, motor vehicles, commodity boards, apprenticeships, exports.

Pending Bill (2026): 131st Constitutional Amendment Bill, 2026 (Delimitation Bills) — for next constituency-redrawing exercise.

*Drill these tables till you can recall any Article, Schedule, Amendment, or Landmark case in <5 s.
THIS is the difference between 70% and 95% in Polity.*